SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 08/05/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.
Zoom link-
https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09
ID: 161 950 4895
Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C25-01976
CASE NAME: CASSIE LANCASTER VS. DISCOVERY BUILDERS, INC.
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****
This Case Management Conference (CMC) trails the hearing for Line 8. If the tentative ruling is uncontested, this CMC is continued to December 4, 2026 at 8:30 a.m. in Dept. 16. The Parties are ordered to meet and confer to discuss ADR and to file a CMC statement.

2. 9:00 AM CASE NUMBER: C25-03287
CASE NAME: JOSEPH WAINAUSKAS VS. DAVE & BUSTER'S MANAGEMENT, LLC
***CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference (CMC) trails the hearing for Line 10. If the tentative ruling is uncontested, this CMC is continued to December 4, 2026 at 8:30 a.m. in Dept. 16. The Parties are ordered to meet and confer to discuss ADR and to file a CMC statement.

3. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
***CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference (CMC) trails the hearing for Line 10. This CMC is continued to September 16, 2026 at 9:00 a.m.

4. 9:00 AM CASE NUMBER: MSC21-00659
CASE NAME: TAJ LOCKETT VS BROKER SOLUTIONS INC
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO SPECIAL INTEROGS NO. 1-3**
FILED BY: LOCKETT, TAJ
****TENTATIVE RULING:****

Summary

Plaintiff Taj Lockett ("Plaintiff" or "Lockett"), individually and in her representative capacity, filed this Motion to Compel Defendant New American Funding LLC's ("Defendant" or "NAF") Further Responses to Special Interrogatories Nos. 1-3 and for sanctions in the amount of $14,310. As set forth below, this motion is **granted** in part and **denied** in part.

Background

Plaintiff Taj Lockett commenced this Private Attorneys General Act ("PAGA") action against her former employer New American Funding, LLC ("NAF"), alleging systematic violations of Labor Code section 2751(a). That statute requires commission contracts to be in writing and set forth the method by which commissions are computed and paid. Lockett contends that NAF's commission plans fail to disclose the "lean in" policy, whereby loan officers may reduce customer costs by accepting a commensurate reduction in their commissions. She seeks to represent a class of "aggrieved employees" defined as all persons employed by NAF in California as loan officers or their functional equivalent from September 6, 2019 to the present, estimated at 3,068 individuals.

Following the United States Supreme Court's decision in *Viking River Cruises, Inc. v. Moriana*, [citation omitted] the parties arbitrated Lockett's individual PAGA claims. In August 2024, Arbitrator Brian C.

Walsh issued a final award finding in Lockett's favor on her individual claim, determining that while NAF's corporate policy treated loan originator contributions as voluntary, the "actual policy in NAF's Brentwood office was contrary to those corporate expectations." The arbitrator emphasized that "each NAF branch (via its regional manager or SVP) has the autonomy to manage the pricing strategy," suggesting that practices varied by location. The Court confirmed this award in January 2025, leaving only Lockett's representative PAGA claims for adjudication.

The instant discovery dispute concerns Lockett's First Set of Special Interrogatories ("SROG"), served in July 2021. Special Interrogatory No. 1 seeks the names and contact information (including personal email, address, and telephone numbers) for all 3,068 loan officers. Special Interrogatories Nos. 2 and 3 seek, for those same individuals, their job titles, employment dates, work locations, and loan origination data, including the number of loans originated and the number on which they "leaned in." After initially objecting, NAF served supplemental responses in December 2025 providing this information for only three individuals (besides Lockett) who were supervised by Lockett's supervisor, Shawn Guaaun, at the Brentwood location. NAF contends that the arbitration award limits the scope of the representative action to employees supervised by Guaaun, arguing that the award establishes that Labor Code section 2751 violations depend on individual manager practices that vary across the state.

Lockett moves to compel full responses subject to a *Belaire-West* notice procedure (whereby a neutral notice is sent to potential class members with an opportunity to opt out of having their contact information shared), offering to split the notice costs. She argues that NAF's narrow interpretation is flatly inconsistent with *Williams v. Superior Court* (2017) 3 Cal.5th 531, which holds that a PAGA plaintiff need not prove the alleged violations or establish a uniform companywide policy as a prerequisite to obtaining statewide discovery. She contends that the arbitrator's role was limited to adjudicating her individual claims, and the Court retains jurisdiction over the representative claims, which allege a systematic, statewide failure to include the "lean in" method in written commission contracts.

NAF opposes the motion, arguing that PAGA standing requires a plaintiff to represent only those who suffered the same violations, and that the arbitration award conclusively established that any section 2751 violation was limited to the Brentwood office under Guaaun's supervision. NAF asserts that *Williams* does not entitle Lockett to unfettered access to over 3,000 employees' private information, noting that the *Williams* Court explicitly stated that discovery limits "need not be all or nothing." NAF further argues that SROGs 2 and 3 are contingent on responses to SROG 1, and since NAF identified only three individuals in its SROG 1 response, it fully answered SROGs 2 and 3 as to those three individuals. NAF also contends that it has already produced aggregate data sufficient to determine the percentage of loan officers who "leaned in," making individual data duplicative, and that inside loan officers (consumer direct agents) should be excluded because they are ineligible to "lean in" due to the nature of their work.

Analysis

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act affords litigants the right to broad discovery. *Sinaiko Healthcare*

Consulting, Inc. v. Pacific Healthcare Consultants (2007) 148 Cal.App.4th 390, 402. Generally, any party may obtain discovery regarding any non-privileged matter that is relevant to the subject matter of the pending action or to the determination of any motion made in that action, provided the matter is either admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc., supra,* 148 Cal.App.4th at 402.

Conversely, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a). In exercising its discretion regarding discovery motions, the trial court relies on the Civil Discovery Act and the legislative intent to avoid surprise and prevent the fabrication of evidence at trial. *Glenfed Dev. Corp. v Superior Court* (1997) 53 Cal.App.4th 1113, 1119. The principles of eliminating gamesmanship in California discovery practice have been established for over sixty years. The California Supreme Court's decision in *Greyhound Corp. v Superior Court* (1961) 56 Cal.2d 355, 376, remains applicable: the Legislature intended to remove the "game" element from trial preparation while preserving the adversary nature of the trial itself. The principal purpose of discovery is to eliminate "the sporting theory of litigation—namely, surprise at the trial." *Chronicle Pub. Co. v. Superior Court*, (1960) 54 Cal.2d 548, 561. See also page 572 of the same opinion, wherein the Court adopted the language from *United States v. Proctor & Gamble Co*., (1958) 356 U.S. 677, noting that discovery serves to make a trial "less a game of blindman's buff and more a fair contest with the basic issues and facts disclosed to the fullest practicable extent."

Objections and Sanctions

Under Cal. Code of Civ. Proc. § 2023.010(e),(f),(h), (i) it is a misuse of discovery to make, "without substantial justification, an unmeritorious objection to discovery, " to make "an evasive response to discovery" and to make or oppose "unsuccessfully without substantial justification a motion to compel or to limit discovery," or to fail to meet and confer to resolve discovery disputes informally.

CCP Section 2023.030(a) provides: "The court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or an attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct."

Boilerplate objections fail to satisfy the level of specificity mandated by statute, and the use of boilerplate objections may be sanctionable. (*Korea Data Systems Co. v. Super. Court* (1997) 51 Cal.App.4th 1513, 1516.) See also Cal. Code of Civ. Proc. §§ 2023.010(e),(f) and (h), and Cal. Code of Civ. Proc. §§ 2030.210, 2030.220 (b)(c).

It is wholly improper for a party to respond to discovery by making unmeritorious objections and then refusing to identify responsive documents and producing them. California's Discovery act was "intended to take the 'game' element out of trial preparation," considering that "a lawsuit should be an intensive search for the truth, not a game to be determined in outcome by considerations of tactics and surprise." (*Greyhound Corp. v. Super. Court In and For Merced County* (1961) 56 Cal.2d 355).

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are "incomplete or evasive," or an "objection to an interrogatory is without merit or too general." When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

Meet and Confer Requirements

The parties to a discovery dispute are required to meet and confer, a reasonable and good faith attempt, to informally resolve any dispute concerning discovery. See Cal. Code Civ. Proc. §§ 2016.040, See *Golf & Tennis Pro Shop, Inc. v. Sup. Ct.* (Frye) (2022) 84 Cal.App.5th 127, 138.

In addition to the statutory requirements that obligate counsel to meet and confer on a discovery motion, Contra Costa County Superior Court local rules require the same. See L.R. 2.121(e). Additionally, the Court's local rules states that motions "should be filed sparingly, in good faith and when the issue(s) cannot be otherwise resolved." L.R. 2.122(c). Cal. Code of Civ. Proc. § 2016.040 requires, at a minimum, attorneys to talk in person, by telephone, or by video conference to work out issues, rather than just send written correspondence with an invitation to "call me if you should have any further questions or comments," which Courts have found to be insufficient. *Jovita Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 429, 431-433.

Here, the record presented to the Court demonstrates that Counsel met and conferred on the outstanding issues by letter on December 23, 2025 and by telephone on January 9, 2026, complying with the requirements of the statute.

In analyzing the forgoing authorities, the Court finds that Plaintiff's motion is justified but responses must be limited based on significant limitations from the arbitration award's factual findings. The Court finds that Plaintiff's strongest argument rests on *Williams v. Superior Court, supra*, which remains binding California precedent establishing that PAGA plaintiffs are entitled to broad, statewide discovery to investigate whether Labor Code violations occurred, without first proving their case or demonstrating a uniform policy.

The fact that her individual claims were arbitrated separately from her representative claims supports Plaintiff's position that the Court, not the arbitrator, retains jurisdiction over the scope of the representative action. The Court finds that Lockett's willingness to employ a *Belaire-West* procedure, which balances the need for notice to aggrieved employees against privacy concerns overcomes NAF's argument that producing contact information for 3,068 individuals is unduly burdensome or invasive, as the procedure allows employees to opt out of disclosure.

The Court notes, however, that Plaintiff's position is materially weakened by the arbitration award's specific finding that NAF's branch offices operate with autonomy regarding pricing strategies, and that the only proven violation occurred at the Brentwood office. While *Williams* provides a broad discovery standard, courts may still tailor discovery where the factual predicate for a statewide violation is weak. The arbitrator's emphasis on branch-level autonomy provides NAF with a colorable argument that statewide discovery merely amounts to an unjustified fishing expedition. Additionally, Plaintiff's inclusion of inside loan officers (who may not have the same commission structure or ability to "lean in") presents a vulnerability, as NAF may assert these employees fall outside the definition of "aggrieved employees" who suffered the alleged violation.

The Court finds that NAF's opposition is substantially justified but potentially overreaches in its interpretation of the arbitration award's preclusive effect. NAF's strongest argument is that the award's factual findings regarding branch autonomy and the limited nature of the violation at Brentwood provide a reasonable basis to limit discovery geographically and hierarchically. The argument that SROGs 2 and 3 are properly limited to the scope of SROG 1 has technical merit under the interrogatories' plain language. NAF also makes a compelling relevance argument regarding inside loan officers, as Lockett has not demonstrated that these employees were subject to the same commission plan or eligible to "lean in."

After considering the position of the Parties, and applying the relevant statutory and decisional authorities, the Court finds good cause to make the following findings and orders.

Ruling

1. Plaintiff's Motion to Compel further answers to Special Interrogatory No. 1 is **granted**. Defendant shall provide further response to include and identify all outside loan officers or those positions actually eligible to participate in the "lean in" program and excludes inside consumer direct agents who could not have suffered the alleged violation, subject to a *Belaire-West* opt-out procedure. Defendant's objections are **overruled**.
2. Plaintiff's Motion to Compel further answers to Special Interrogatory No. 2 is **granted**. Defendant shall provide further response to the subparts of this interrogatory to include and identify all outside loan officers or those positions actually eligible to participate in the "lean in" program and excludes inside consumer direct agents who could not have suffered the alleged violation, subject to a *Belaire-West* opt-out procedure. Defendant's objections are **overruled**.
3. Plaintiff's Motion to Compel further answers to Special Interrogatory No. 3 is **granted**. Defendant shall provide further response to the subparts of this interrogatory to include and identify all outside loan officers or those positions actually eligible to participate in the "lean in" program and excludes inside consumer direct agents who could not have suffered the alleged violation, subject to a *Belaire-West* opt-out procedure. Defendant's objections are **overruled**.
4. Plaintiff's request for sanctions are **denied** given the substantial justification for NAF's position and the novelty of the post- *Viking River* discovery ruling.
5. The Parties shall meet and confer to implement the intent of this Court's ruling and take necessary steps to provide responses in compliance with applicable law, including the *Belaire-West* notice procedures. Respondents who opt out shall not be listed in responses.
6. Further responses shall be provided by NAF no later than fifteen (15) days from the date of the expiration of the *Belaire-West* opt out date, subject to a stipulation and proposed order

extending the response date.

7. Plaintiff's counsel is ordered to prepare and e-file a proposed order conforming to the foregoing no later than five (5) days from the date of this hearing.

5. 9:00 AM CASE NUMBER: MSC22-00343
CASE NAME: JOEL ROBLES VS. GLOBAL SECURITY MANAGEMENT AGENCY INC A CALIFORNIA CORPORATION
***FURTHER CASE MANAGEMENT CONFERENCE**
FILED BY:
****TENTATIVE RULING:****

This Case Management Conference (CMC) trails the hearing for Line 20. Since no appearance is required, and Line 20 seeks final approval of a class action and PAGA settlement, this CMC is **vacated**.

Law & Motion

6. 9:00 AM CASE NUMBER: C24-00143
CASE NAME: SALVADOR MAGALLON VS. SEQUENTIAL ENVIRONMENTAL SERVICES, LLC, AN OREGON LIMITED LIABILITY COMPANY
PRELIMINARY APPROVAL OF CLASS ACTION AND PAGA SETTLEMENT AGREEMENT
FILED BY: MAGALLON, SALVADOR
****TENTATIVE RULING:****

Summary

Plaintiff Salvador Magallon ("Plaintiff) filed his motion for preliminary approval of the class action and PAGA litigation against Defendant Mahoney Environmental Solutions, LLC ("Defendant"), collectively referred to as the "Parties." The Motion is granted as set forth herein. No appearance is required at the August 5, 2026 hearing, provided that Plaintiff's counsel complies with the proposed order.

Background

The Parties have reached a class action and PAGA settlement to resolve claims brought by Plaintiff against Defendant. The Settlement Class is defined as: (1) non-exempt employees employed by Mahoney Environmental Solutions, LLC in California from January 1, 2024 to August 10, 2025; and (2) non-exempt employees employed by SeQuential Environmental Services, LLC (now known as Mahoney Environmental Solutions, LLC) in California from January 18, 2020 to August 10, 2025. The "Aggrieved Employee" group for PAGA purposes includes non-exempt employees employed during the PAGA Period from January 18, 2023 to August 10, 2025. Defendant estimates approximately 166 Class Members and 108 Aggrieved Employees are covered by this Settlement.

Defendant has agreed to pay a total Gross Settlement Amount of $555,000.00 on a non-reversionary basis to settle and release all claims alleged in the operative complaint, including claims for failure to pay minimum wages and overtime, meal and rest period violations, failure to provide accurate wage statements, failure to pay vacation wages and sick pay, failure to reimburse business expenses, failure to maintain required payroll records, waiting time penalties, unfair business practices, and PAGA penalties. The Gross Settlement Amount does not include the employer's share of payroll taxes, which Defendant will pay separately. The Settlement was reached after extensive arm's-length negotiations, including a full-day mediation with experienced mediator Daniel Turner, Esq., and represents approximately 76% of Plaintiff's estimated realistic exposure of $727,953.60.

The Gross Settlement Amount shall be allocated as follows: (1) Class Counsel Fees Payment of up to $185,000.00 (one-third of the Gross Settlement Amount); (2) Class Counsel Litigation Expenses Payment of up to $20,000.00; (3) Class Representative Service Payment of up to $10,000.00 to Plaintiff Salvador Magallon; (4) Administration Expenses Payment of up to $7,500.00 to Phoenix Class Action Administration Solutions; and (5) PAGA Penalties of $55,500.00, with 25% ($13,875.00) allocated to Individual PAGA Payments to be distributed pro-rata to Aggrieved Employees and 75% ($41,625.00) paid to the California Labor and Workforce Development Agency. If the Court approves any lesser amount for the foregoing allocations, no funds shall revert to Defendant; rather, the remainder shall be added to the Net Settlement Amount for distribution to Participating Class Members.
The Net Settlement Amount, estimated to be $277,000.00 after the above deductions, shall be distributed to Participating Class Members as Individual Class Payments based on a workweeks allocation formula. Each Participating Class Member's Individual Class Payment shall be calculated by: (a) dividing the Net Settlement Amount by the total number of Workweeks worked by all Participating Class Members during the Class Period; and (b) multiplying that result by each Participating Class Member's individual Workweeks. Based on current estimates, the average Individual Class Payment is approximately $1,668.67 per Class Member if no exclusions occur.

If the actual number of Workweeks during the Class Period exceeds 18,762 by more than 10% (i.e., exceeds 20,638.20 Workweeks), Defendant shall have the option to either: (i) increase the Gross Settlement Amount on a proportional basis above 10%; or (ii) elect to end the Class Period on the date the number of Workweeks reaches 20,638.20. The Settlement requires Defendant to deliver Class Data to the Administrator within fifteen days after Preliminary Approval, and the Administrator shall mail the Class Notice to all Class Members via first-class U.S. mail within fourteen days of receiving the Class Data, including Spanish translations.

Class Members shall have sixty days from the mailing of the Class Notice (plus an additional fourteen days for any re-mailed notices) to: (1) opt out of the Settlement; (2) object to the Settlement; and/or (3) challenge the number of Workweeks and/or PAGA Pay Periods attributed to them in Defendant's records. The Class Notice shall include a summary of the case and settlement terms and detailed instructions regarding these rights. The Settlement is non-reversionary, meaning all funds allocated to the Settlement shall be distributed regardless of the level of participation, with any unclaimed funds increasing distributions to Participating Class Members rather than reverting to Defendant.

The Parties seek appointment of Phoenix Class Action Administration Solutions as the Administrator to handle notice and claims administration, appointment of Plaintiff Salvador Magallon as Class Representative for settlement purposes only, and appointment of D.Law, Inc. as Class Counsel for settlement purposes only. The Parties further seek preliminary approval of the Settlement Agreement, approval of the Class Notice form, and scheduling of a Final Approval Hearing to consider the request for final approval and the applications for attorneys' fees, litigation expenses, and the class representative service payment.

Analysis

The primary determination is whether the proposed settlement is "fair, reasonable, and adequate" under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801. The factors include "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement." (See also, *Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521.)

California law provides guidance concerning judicial approval of class action settlements. First, public policy favors settlement (*Neary v. Regents of Univ. of Cal*. (1992) 3 Cal.4th 273), but the court must not approve an agreement contrary to law or public policy (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127). Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*Cal. State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) Consequently, courts have noted that *Neary* does not apply where public rights are implicated, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America (*2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees
Plaintiffs' counsel seek attorneys' fees of $185,000.00 representing one third of the total gross settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a *Lodestar* cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id. at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of $20,000 and the requested representative payment of $10,000 for Plaintiff will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

Upon review, there is good cause to find that the Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause, therefore appearing, the Court makes the following orders and ruling.

RULING

1. The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to

justify *preliminary* approval. The motion is **granted**.

2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged on March 20, 2026 attaching a copy of this ruling. If there is a conflict in the proposed order and this ruling, the terms of this ruling shall prevail.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without a hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on August 5, 2026.

7. 9:00 AM CASE NUMBER: C24-02789
CASE NAME: QUINITA DANIEL VS. HOMELIFE SENIOR CARE, INC., A CALIFORNIA CORPORATION; COMPEL ARBITRATION
FILED BY: HOMELIFE SENIOR CARE, INC., A CALIFORNIA CORPORATION;
TENTATIVE RULING:

This hearing is **vacated** per stipulation. See order for date of continued hearing. If this matter settles, as represented, counsel are requested to submit a proposed stipulation and order to vacate the continued hearing date. No appearance is required at the August 5, 2026 hearing.

8. 9:00 AM CASE NUMBER: C25-01976
CASE NAME: CASSIE LANCASTER VS. DISCOVERY BUILDERS, INC.

FILED BY: DISCOVERY BUILDERS, INC.
TENTATIVE RULING:
Introduction

Defendant Discovery Builders, INC. ("DBI") brings this Motion to Compel Arbitration and Stay Matter pursuant the Master Declaration For Title 7 & Dispute Resolution recorded in County of Contra Costa on June 12, 2014 ("the Master Declaration") and in accordance with California Code of Civil Procedure section 1281.2. The Motion is opposed by Plaintiffs Cassie and Christopher Lancaster ("Plaintiffs").

For the following reasons, the **Motion to Compel Arbitration is denied**.

Background Facts

This is a single-family home construction defect action arising under Civil Code sections 896 et seq.

("Title 7" Requirements for Real Property Defect Actions.)

Defendant Discovery Builders Inc., is a Northern California homebuilder and has been sued in the instant matter by the owners of a single-family home for alleged violations of Standards for Residential Construction, as defined in California Civil Code Sections 896 and 897. (Herman Decl. ¶ 3). The subject home is identified as APN 018-700-020, more commonly referred to as 500 Yelland Way, Brentwood California, lot 218 in the Portofino Estates Project ("the Property"). (Herman Decl. ¶ 4).

The Property was originally sold on February 11, 2015. (Herman Decl.) ¶ 5). The Property was sold subject to a "Purchase and Sale Agreements and Escrow Instructions" signed by DBI and the original purchaser. (Herman Decl. ¶ 6). The Purchase and Sale Agreement contains reference to the Binding Dispute Resolution Procedures at Paragraph 28 (Herman Decl. ¶ 7). At the time of said purchase, the original purchaser was provided with the "Master Declaration for Title 7 and Dispute Resolution" which includes extended discussion of the Binding Dispute Resolution Procedures (Herman Decl. ¶ 8).

In August 2019, Plaintiffs bought the Home from Edward J. Rettagliata Jr. and Bridget Rettagliata. (Lancaster Decl. ¶ 3.) Escrow closed on or around August 27, 2019. The home is not part of a common interest development, and there is no homeowner's association. (Lancaster Decl. ¶ 2.)

In December 2023, Plaintiffs served a Notice of Claims on DBI, initiating the pre litigation procedures under Civil Code section 910 et seq. The parties then agreed to a stipulated pre-litigation process in lieu of the Title 7 procedures. After months of effort, the process did not resolve and was terminated. (Kim Decl., ¶ 2.) Plaintiffs filed this action on July 9, 2025, alleging a single cause of action under Title 7. (Civ. Code §§ 895, et seq.; Complaint, ¶¶ 26-29.) After two 30-day extensions, DBI answered on November 3, 2025. (Kim Decl., ¶ 3.) DBI filed this motion on November 25, 2025.

Request for Judicial Notice

Plaintiffs in opposition to the Motion requests judicial notice of four documents. Exhibit A is a minute order denying a motion to compel arbitration in a different case in this Court. Exhibits B through D are of official filings made to the California Secretary of State.

Exhibit A is a record of a court of this State, of which judicial notice is proper. (Evid. Code §§ 452(d), 453.) Plaintiffs offer Exhibit A not as binding authority, but as a well-reasoned application of controlling California law to facts materially indistinguishable from those at issue here, and as the basis for the discussion in Plaintiffs' Opposition of this Court's prior ruling on the same Master Declaration, Binding Dispute Resolution Procedures, and Declaration of Notice to Subsequent Purchasers. (Kim Decl., ¶¶ 4-8.)

Exhibits B, C, and D are official records of the California Secretary of State, of which judicial notice is proper. (Evid. Code §§ 452(c), (h); see also Gov. Code §§ 12184, 12185.) Plaintiffs offer Exhibits B and C for the limited purpose of establishing that Discovery Builders, Inc. and West Coast Home Builders, Inc. are affiliated entities owned and controlled by members of the same family. The Statement of Information for Discovery Builders, Inc. identifies Albert D. Seeno III as its Chief Executive Officer, Secretary, and Director. The Statement of Information for West Coast Home Builders, Inc. identifies Albert D. Seeno Jr. as its Chief Executive Officer and Director. Albert D. Seeno III is the son of Albert D. Seeno Jr.

Plaintiffs offer Exhibit D for the limited purpose of establishing that Construction Arbitration Services, Inc., one of only two arbitration providers designated in Section IV.A of the Binding Dispute Resolution Procedures attached as Exhibit F to the Master Declaration, surrendered its right to transact intrastate business in California on August 19, 2010, approximately four and a half years before DBI recorded the Master Declaration in February 2015.

The Court grants Plaintiffs'' request for judicial notice of Exhibits A through D.

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Cal. Teachers Ass'n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp*. (1996) 14 Cal.4th 394, 413.) The role of the trial court is to sit as a trier of fact, weighing any affidavits, declarations, and other documentary evidence, together with oral testimony received at the court's discretion, to reach a determination on the issue of arbitrability. (*Hotels Nev. v. L.A. Pac. Ctr., Inc.* (2006) 144 Cal. App. 4th 754, 758, *citing Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (Id. [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability…." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

Additionally, Civil Code section 912, subpart (f) ("Section 912f") provides: "A builder shall record on title a notice of the existence of these procedures and a notice that these procedures impact the legal rights of the homeowner. This information shall also be included with the original sales documentation and shall be initialed and acknowledged by the purchaser and the builder's sales representative." As such, Section 912f addresses notice to future purchasers of the pre-litigation procedures in Title 7. Nothing in Title 7 makes reference to or provides authority to bind future purchasers to arbitration or judicial reference or other alternative dispute resolution procedures not enumerated in Title 7.

Analysis

Defendant's Initial Burden

The burden of persuasion is always on the moving party to prove the existence of an arbitration agreement with the opposing party by a preponderance of the evidence. (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 164.)

First, the moving party bears the burden of producing "prima facie evidence of a written agreement to arbitrate the controversy." (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394,413.) The moving party "can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature." (*Gamboa v.*

Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165 citing *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 543–44.) Although "[p]ublic policy favors contractual arbitration as a means of resolving disputes … that policy '"'does not extend to those who are not parties to an arbitration agreement, and a party cannot be compelled to arbitrate a dispute that he has not agreed to resolve by arbitration." (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1057.)

The strong public policy favoring arbitration does not reach those who never agreed to arbitrate. (*Benasra v. Marciano* (2001) 92 Cal.App.4th 987, 990.) The party moving to compel bears the burden of proving a valid agreement which requires mutual assent and consideration. The parties must have actually agreed to arbitrate, and each must have given the other something of value. (*Banner Entertainment, Inc. v. Superior Court* (1998) 62 Cal.App.4th 348, 358.) Mere receipt of a document containing arbitration provisions is not enough. (*Mitri v. Arnel Management Co*. (2007) 157 Cal.App.4th 1164, 1173 [acknowledgment of receipt does not establish agreement to arbitration provisions].) "Absent a clear agreement to submit disputes to arbitration, courts will not infer that the right to a jury trial has been waived." (*Adajar v. RWR Homes, Inc*. (2008) 160 Cal.App.4th 563, 569.)

DBI argues that the documents recorded on title advised the buyers that the Binding Dispute Resolution Procedures set forth in Exhibit F to the Master Declaration are the final method of resolving any dispute. Plaintiffs proceeded to purchase the subject property with notice of the arbitration agreement, thereby agreeing to the arbitration provisions.

Plaintiffs point out that DBI's evidence establishes that the Rettagliatas—not Plaintiffs—signed a purchase agreement with DBI, and that the Rettagliatas—not Plaintiffs—were provided the Master Declaration. Plaintiff argues that DBI presents no evidence that Plaintiffs assented to any arbitration terms, or that any consideration passed between DBI and Plaintiffs, and without both elements, no agreement to arbitrate exists.

DBI relies on *Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223 ("*Pinnacle*"); *Ridley v. Rancho Palma Grande Homeowners Assn*. (2025) 114 Cal.App.5th 788 ("*Ridley*"); *United States Home Corp. v. Ballesteros Trust* (2018) 134 Nev. 180 ("*Ballesteros*"); and *Christian v. Flora* (2008) 164 Cal.App.4th 539 ("*Christian*"). The common thread in each is a statutory framework, namely Davis Stirling in California and its Nevada equivalent in *Ballesteros*, that expressly binds successor owners to recorded CC&Rs, which is absent under Title 7.

Ridley concerned HOA CC&R maintenance duties within an existing Davis Stirling development. It says nothing about arbitration, and its "contractual nature" language applies only where legitimate CC&Rs exist under that statute. *Ballesteros* is a Nevada decision interpreting Nevada's Uniform Arbitration Act and Nevada common interest statutes. It has no bearing on Title 7. *Christian* interpreted road-easement CC&Rs in a rural subdivision. It confirmed that legitimate CC&Rs creating reciprocal rights can be enforced. It does not hold that a developer can unilaterally record arbitration terms against a single-family home outside any statutory framework.

Pinnacle involved a Davis-Stirling common interest development, and the Supreme Court's holding was expressly anchored in Davis-Stirling's authorization for developers to record binding covenants and in its statutory expansion of equitable servitudes. (*Pinnacle*, supra, 55 Cal.4th at pp. 236–242.) The California Supreme Court emphasized that under the FAA, arbitration is "a matter of consent, not coercion", and in *Pinnacle*, consent came from the Davis Stirling framework itself. (Id. at pp. 236, 240–241.) Pinnacle recognized that it allowed a non-signatory to an arbitration agreement to be bound in

Ruiz via Code of Civil Procedure section 1295 because the Legislature may devise reasonable rules in civil litigation to permit the delegation to another party of the power to consent to arbitration instead of a jury trial. (*Pinnacle*, supra, 55 Cal.4th at 241, citing *Ruiz v. Podolsky* (2010) 50 Cal.4th 838, 853.)

In *McArthur*, the First District Court of Appeal confirmed the trial court's denial of a motion to compel arbitration to a non-signatory to a 2011 amendment to a family trust. (*McArthur v. McArthur* (2014) 224 Cal.App.4th 651, 653.) The Court stated under the Davis-Stirling Act, each owner of a condominium unit either has expressly consented or is deemed by law to have agreed to the terms in a recorded declaration. (*Id. at* 660.) The Court highlighted the importance that the Davis-Stirling Act statutorily confers standing upon an association to prosecute claims for construction damage in its own name without joining the individual condominium owners. (*Id* at 661; citing *Pinnacle, supra*, 55 Cal.4th at p. 241.)

Here, the Master Declarations do not function the same as the CC&Rs in *Pinnacle* because there is no statutory authority to bind Plaintiffs to the arbitration agreement. Plaintiffs are not bound by the Davis Sterling Act like in *Pinnacle*, or by Code of Civil Procedure section 1295 in *Ruiz*. No such legislative mechanism exists to bind Plaintiffs to the arbitration agreement in Title 7 of the Civil Code.

As such, Defendant has not carried its initial burden to show the existence of an agreement to arbitrate between the parties.

Conclusion

For the reasons analyzed above, the **Motion to Compel Arbitration is Denied.**

9. 9:00 AM CASE NUMBER: C25-02272
CASE NAME: GEORGE PAVANA VS. DAS POLLAYIL
FOR OSC RE SALE OF REAL PROPERTY
FILED BY:
TENTATIVE RULING:*

Before the Court is an application for an order directing the Sheriff to sell real property pursuant to certain debt collection statutes in the Code of Civil Procedure. The application was filed by plaintiffs and judgment creditors, George Pavana and Philip Philip. The defendant has not appeared, but third-party claimant, Nimmy Parecadan, has opposed the application.

A brief procedural history is set forth in the Stipulation and Order filed on May 15, 2026. The recitals therein state, in relevant part:

> WHEREAS, Judgment Creditors filed their Application for an Order Directing Sheriff to Sell Real Property in connection with [Parecadan]'s property located at 1849 Canyon Dr. Pinole, California 94564 ("Subject Property") on August 6, 2025;
>
> WHEREAS, Judgment Creditors filed an ex parte application for an Order to Show Cause ("OSC") hearing related to the application for sale of 1/3 of the Subject Property on August 26, 2025;

WHEREAS, the Hon. Benjamin Reyes signed an order granting an OSC hearing related to Judgment Creditors' Application for Sheriff's Sale of the Subject Property. The OSC hearing date was initially set for October 15, 2025 at 9:00 a.m. in Dept. 16 of the above-entitled Court;

WHEREAS, on October 15, 2026 [sic], the OSC Re Sale of Real Property was heard and Hon. Benjamin Reyes continued the OSC hearing to January 28, 2026 at 9:00 a.m. to consider the [Parecadan]'s late opposition;

WHEREAS, [Parecadan] submitted to the Contra Costa County Sheriff and served on Judgement Creditors a "Third Party Claim" dated September 12, 2025, and [Parecadan] thereafter filed on November 7, 2025 and served on Judgment Creditors a "Petition for Third Party Claim" in Alameda County Superior Court Action No. C-741785 (collectively, "Third-Party Claim");

WHEREAS, on January 20, 2026, [Parecadan] filed an ex parte application to continue the OSC hearing at the time set for January 28, 2026 due to being unrepresented by counsel at the time, and the pending Third-Party Claim in Alameda County Superior Court;

WHEREAS, the Court granted [Parecadan]'s ex parte application on January 20, 2026, continuing the OSC hearing to April 15, 2026. The Court subsequently continued the hearing to May 20, 2026 on its own motion;

WHEREAS, following a continuance by the Court to accommodate its calendar from the previously scheduled hearing date of May 1, 2026, the hearing on [Parecadan]'s Third-Party Claim was heard on May 7, 2026 at 10:00a.m. in Dept. 520, the Hon. Jamilah Jefferson presiding, of the Alameda County Superior Court (Case No. C-741785). The Hon. Jamilah Jefferson further continued the hearing on [Parecadan]'s Third-Party Claim to July 14, 2026 at 10:00 a.m. to allow for further oral argument and testimony as reflected by Minute Order entered May 7, 2026. (A true and correct copy of the Minute Order is attached hereto as Exhibit A.)

WHEREAS, in an effort to preserve judicial economy and reduce the risk of inconsistent rulings, the Parties further stipulate to continue the Judgment Creditors' Hearing on Order to Show Cause Regarding Sale of the Subject Property to a date after the July 14, 2026 hearing on Petitioner's Third-Party Claim in Alameda County Superior Court, and no earlier than August 1, 2026;

In response to the above stipulated facts, this Court set the hearing on this application for August 5, 2026.

Parecadan requests judicial notice of the judgment entered after the Alameda hearing on her third-party claim. The request is **granted**. The Honorable Jamilah A. Jefferson presided over a hearing that commenced on May 7, 2026 and continued on July 14, 2026. Following submission of the matter, judgment was entered in favor of Parecadan. Specifically, the judgment stated:

> Nimmy Parecadan has the sole right to ownership and possession of the Property free and clear of any claim of right to ownership or possession of Das Pollayil, and judgment creditors have no right to sell the property to satisfy any judgment lien against Das Pollayil arising from the judgment herein.

Pursuant to Code of Civil Procedure, § 720.390:

> At the conclusion of the hearing, the court shall give judgment determining the validity of the third-party claim and may order the disposition of the property or its proceeds in accordance with the respective interests of the parties. Subject to Section 720.420, the judgment is conclusive between the parties to the proceeding.

Because the above-mentioned judgment from the Superior Court of California, Alameda County, is binding on the plaintiffs here, the application must be **denied**.

10. 9:00 AM CASE NUMBER: C25-03287
CASE NAME: JOSEPH WAINAUSKAS VS. DAVE & BUSTER'S MANAGEMENT, LLC

FILED BY: DAVE & BUSTER'S MANAGEMENT, LLC
TENTATIVE RULING:*
Introduction

Before the Court is Defendant Dave and Buster Management LLC's (DnB or Defendant) Motion To Compel Plaintiff Joseph Wainauskas's individual claims to binding arbitration, and stay the representative PAGA claims in this civil action. The Motion relates to Plaintiff's Complaint for one solely representative PAGA cause of action, purposefully excluding Plaintiff's individual PAGA claim.

For the reasons stated below, **Plaintiff shall file an amended complaint by August 20, 2026**. **Parties to appear to discuss a new briefing schedule based on the amended complaint.**

Procedural Background

This case is about a class action employment lawsuit based on wage violations from May 15, 2018, until the date of class certification. (Complaint at ¶ 20 and generally.) Plaintiff filed her complaint on November 8, 2022. Plaintiff filed a Notice of Hearing on August 23, 2023, which provided if non motion to compel arbitration is filed by the November 29, 2023, CMC, the Court will consider the Defendant to have waived their rights to arbitration. Defendant EVLO filed their Motion to Compel Arbitration on November 28, 2023.

Factual and Procedural Background

Plaintiff worked for Defendant as a non-exempt Service Support employee at Defendant's Long Beach, California location from November 12, 2023, to June 3, 2025. (Complaint ¶ 1.)

On November 7, 2025, Plaintiff filed the operative pleading in this Court, styled the "Representative Action Complaint." The complaint alleges a single cause of action for civil penalties under the Private

Attorneys General Act, Labor Code section 2698 et seq., brought on behalf of the State of California and other aggrieved employees. ((Complaint ¶¶ 17-27.) Plaintiff did not plead a class action, did not plead an individual PAGA claim for himself, and did not seek any individual recovery. The prayer for relief seeks only PAGA civil penalties, attorneys' fees, and costs. (Id. at ¶¶ A-C.)

Defendant's Motion asserts that Plaintiff signed a mutual arbitration agreement during onboarding on November 3, 2023. (Walters Decl. ¶ 18.) The Agreement includes a "PAGA Individual Action Requirement" stating that the parties "agree to arbitrate PAGA claims on an individual bas[i]s only" and that "any claim by [y]ou under PAGA to recover your unpaid wages or other individual relief must be arbitrated under this Agreement." (Id., Ex. D [Arbitration Agreement], ¶ 5.) The same provision separately states that if the PAGA Individual Action Requirement is found "invalid, unenforceable, unconscionable, void or voidable," then "the PAGA action must be litigated in a civil court of competent jurisdiction—not in arbitration." (Id.) The Agreement's delegation clause expressly "does not apply to the … 'PAGA Individual Action Requirement,'" leaving questions about the individual-action requirement for the Court. (Id. at ¶ 1.)

Defendant filed this Motion on December 15, 2025, seeking to compel arbitration of "Plaintiff's individual PAGA claims" and to stay the representative claims pending that arbitration.

<u>Legal Standard for Motions to Compel Arbitration</u>

A motion to compel arbitration "is in essence a suit in equity to compel specific performance of a contract." (*Duffens v. Valenti* (2008) 161 Cal.App.4th 434, 443.) "A party who files a motion to compel arbitration 'bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense." (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp*. (1996) 14 Cal.4th 394, 413.)

In California, "[a] strong public policy favors the arbitration of disputes, and doubts should be resolved in favor of deferring to arbitration proceedings." (*Laswell v. AG Seal Beach, LLC* (2010) 189 Cal.App.4th 1399, 1404-1405 [citation omitted].) "A trial court is required to order a dispute to arbitration when the party seeking to compel arbitration proves the existence of a valid arbitration agreement covering the dispute." (Id. [citation omitted]; Cal. Civ. Code Proc. § 1281.2.) As a result of this public policy, "a heavy presumption weighs the scales in favor of arbitrability…." (*Cione v. Foresters Equity Servs., Inc.* (1997) 58 Cal.App.4th 625, 642 [citation omitted].)

<u>Headless PAGA Doctrine</u>

The Private Attorneys General Act of 2004 (Lab. Code, § 2698 *et seq*.) ("PAGA") has served as a vehicle for employee-plaintiffs to pursue civil penalties for Labor Code violations on a representative basis. California courts have recently placed renewed focus on the standing requirements for PAGA claims, particularly in cases where the named plaintiff does not pursue his individual PAGA claims. This emerging judicial doctrine is referred to as a "Headless PAGA Claim." A Headless PAGA Claim arises when a plaintiff brings a representative action under PAGA only for penalties associated with violations against other aggrieved employees and not for their own individual PAGA claim.

The Appellate Courts are split as to whether an employee may bring a Headless PAGA Claim to bypass arbitration of the employees individual claim. (See *Balderas v. Fresh Start Harvesting, Inc*. (2024) 101 Cal.App.5th 533, 536-537; *CRST Expedited, Inc. v. Superior Court* (2025) 112 Cal.App.5th 872, 883, review granted September 17, 2025, S292005; Compare with *Leeper v. Shipt, Inc.* (2024) 107 Cal.App.5th 1001, 1005.)

<u>Analysis</u>

Defendant's Initial Burden

Parties moving to compel arbitration "may meet their initial burden to show an agreement to arbitrate by attaching a copy of the arbitration agreement purportedly bearing the opposing party's signature." (*Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1060.)

Defendant provides an electronically signed copy of the Arbitration Agreement. (Walters Decl., Ex. D.) As such, Defendant has met its initial burden to establish the existence of an Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why it should not be enforced.

Complaint Alleges an Individual PAGA Claim

Plaintiff posits that he has not pled an individual PAGA claim, has not sought any personal recovery on his behalf, and has not asked this Court to adjudicate anything on his own behalf. (Opposition at p. 3: 18-20.)

Plaintiff cautions the Court not to insert a missing individual PAGA according to *Rodriguez*. (Opposition at p. 4: 21-23; citing *Rodriguez v. Packers Sanitation Servs. Ltd., LLC* (2025) 109 Cal.App.5th 69, 80, review granted May 14, 2025, S290182.) The Complaint in this case is different because in Rodriguez the operative complaint omitted the words "individual" and "individually" and intentionally plead allegations as , "JOSE A. PARRA RODRIGUEZ, in a Representative Capacity only and on behalf of other members of the public similarly situated." (*Rodriguez* supra 109 Cal.App.5th 69, 77.)

This Complaint is not pleas with the same intentionality and attention to detail. The Complaint alleges that Plaintiff is entitled to an award of civil penalties on behalf of themselves, the State of California, and similarly Aggrieved Employees of Defendants. (Complaint ¶ 26.) The Complaint further alleges that Plaintiff seeks an award of reasonable attorney's fees and costs pursuant to California Labor Code section 2699, subdivision (g)(1). (Complaint ¶¶ 27.) These allegations plead both individual and representative claims.

From its Opposition Plaintiff has made clear his intention is to plead a Headless PAGA claim, despite his failure to do so in the Complaint. The Court has discretion to allow Plaintiff's by adding or striking out the name of any party. In the furtherance of justice, the Court grants Plaintiff leave to amend in order to remove the individual component of the sole PAGA claim in his Complaint.

Plaintiff is granted 15 days from the date of the hearing.

<u>Conclusion</u>

As analyzed above, **Plaintiff shall file an amended complaint by August 20, 2026**. **Parties to appear to discuss a new briefing schedule based on the amended complaint.**

11. 9:00 AM CASE NUMBER: C25-03352
CASE NAME: LUIS GOMEZ PASTRANA VS. DCS TRANSPORTATION
AN ORDER OF DISMISSAL AND/OR ORDER FOR TRANSFER OF VENUE
FILED BY: DISCOUNT COURIER SERVICES, INC.
TENTATIVE RULING:

Defendant's motion to transfer venue is **continued**, *sua sponte,* to September 16, 2026 at 9:00 a.m. for supplemental briefing from the Plaintiff, as set forth below.
This is a putative class action and representative action under California's Private Attorneys General Act alleging wage and hour violations. Plaintiff Luis Gomez Pastrana, a former courier employed by Defendant Discount Courier Services, Inc. (DCS), filed a First Amended Complaint on December 11, 2025, asserting nine causes of action for various violations of the Labor Code.

On January 20, 2026, DCS filed a Motion to transfer venue of this action to Orange County. DCS's moving papers asserted the existence of a venue selection provision in Plaintiff's employment contract, but did not attach the contract. DCS's Chief Executive Officer, Omar K. Elkabbara, submitted a declaration stating that he was "aware that Luis Gomez Pastrana signed a written agreement requiring venue of this action in Orange County, California," without further elaboration.

On July 23, 2026 Plaintiff filed an opposition asserting, among other things, that DCS failed to establish the existence or enforceability of a venue selection clause through admissible evidence, noting that Elkabbara apparently lacked personal knowledge of any contract, and DCS had failed to produce the writing itself. Plaintiff pointed out that the Court could not determine the venue provision's scope or applicability to this case without reviewing the contract.

On July 29, 2026 DCS filed a reply brief accompanied by a Supplemental Declaration of Omar K. Elkabbara attaching a written document entitled Independent Contractor Agreement, and attaches a copy as Exhibit A. The agreement contains a provision captioned "Venue" stating: "In any court litigation arising out of this agreement, venue is in the Superior Court of the State of California, County of Orange."

The general rule of motion practice . . . is that new evidence is not permitted with reply papers . . . '[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . .'" (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) If the evidence is permitted, the other party should be given the opportunity to respond. (*Id*. at p. 1538.)

Accordingly, the hearing is **continued** to September 16, 2026 at 9:00 a.m. Plaintiff may file a supplemental brief addressing the enforceability of the venue selection clause no later than September 2, 2026. The brief shall not to exceed 10 pages, exclusive of exhibits.

12. 9:00 AM CASE NUMBER: MSC19-00771
CASE NAME: GREG HART VS THOMAS MILWAY
MOTION TO ENFORCE REMITTITUR FILED ON 05/14/26 BY CHARLES WILCOXSON & SHERRY WILCOXSON
FILED BY:
<u>*TENTATIVE RULING:*</u>

Cross-Complainants Charles and Sherry Wilcoxson's motion to enforce the remittitur is granted in part and denied in part. The August 18, 2023, order on the Milways' motions for summary judgment and adjudication is vacated with new rulings on those motions provided below. Further, the Court sets a trial setting conference for August 27, 2026, at 8:30a.m.

<u>Ruling on Motions for Summary Judgment</u>

The Milways filed motions for summary judgment or adjudication as to their cross-complaint and the Wilcoxsons' cross-complaint. On August 18, 2023, the Court granted summary judgment on the Wilcoxsons' cross-complaint and it granted summary adjudication on part of the Milways' claims against the Wilcoxsons. The Milways subsequently dismissed their final claim against the Wilcoxsons for declaratory relief regarding the 28' wide strip of land beneath Alwin Road. (Dismissal filed 824/23.)

The Wilcoxsons appealed. The Court of Appeal found that there was a triable issue as to the Wilcoxsons' prescriptive easement claim. The Court of Appeal reserved in part and affirmed in part. (*Milway v. Wilcoxson*, case no. A168895; opinion filed 12/24/24.)

The Court of Appeal held that "Summary judgment of the Wilcoxsons' cross-complaint as to the third, fourth, and fifth causes of action are reversed. Summary judgment of the Wilcoxsons' cross complaint as to the first and second causes of action are affirmed. Summary adjudication of the Milways' cross-complaint as to the first (the Wilcoxsons' claim to any 'title, right, estate, lien or interest' in the Milway property) and third (cause of action to quiet title) issues are reversed. Summary adjudication of the Milways' cross-complaint as to the second issue (the Wilcoxsons' claim that a 28-foot strip of land extending from 20 Alwin Road to Homestead Avenue is part of the Harts' property) is affirmed." (*Milway v. Wilcoxson*, case no. A168895; opinion filed 12/24/24.)

The Wilcoxsons filed this motion to have the Court follow the remittitur. The Court will follow the remittitur. The August 18, 2023, order is vacated and the Court enters the following order in the parties' motions for summary judgment and adjudication as follows:

Summary adjudication of the Wilcoxsons' cross-complaint as to the third, fourth, and fifth causes of action are denied. Summary adjudication of the Wilcoxsons' cross-complaint as to the first and second causes of action are granted.

Summary adjudication of the Milways' cross-complaint as to the first issue (cause of action one for declaratory relief regarding the Wilcoxsons' claim to any "title, right, estate, lien or interest" in the Milway property) and the third issue (cause of action three for quiet title) are denied. Summary adjudication of the Milways' cross-complaint as to the second issue (cause of action one for declaratory relief regarding the Wilcoxsons' claim that a 28-foot strip of land extending from 20 Alwin

Road to Homestead Avenue is part of the Harts' property) is granted.

Costs on Appeal

The Wilcoxsons were awarded their costs on appeal. They filed a memorandum of costs on March 28, 2025, for $1,025.44. The Milways did not file a motion to tax costs. When the Wilcoxsons filed this motion they had not received payment for the costs. In the opposition, however, the Milways provide proof that they paid the costs on June 11, 2026. (Haramalis dec. ¶9.) Therefore, the request for costs is moot.

Request for Order on Obstructions

The Wilcoxsons also request an order directing the Milways to immediately remove all obstructions from the easements to allow the easements to be used as they were used prior to the date that the Milways purchased 1000 Homestead. The Court of Appeal did not enter judgment in the Wilcoxsons' favor on the easement issues. Instead, the reversal by the Court of Appeal found that there were issues that should be decided by the trier of fact.

The Wilcoxsons' request that the Milways be ordered to remove obstructions from the easement area is not supported by the Court of Appeal's order and is otherwise not supported by this motion. The request is **denied**.

Case Management

This case was scheduled for a jury trial approximately one month after the motions for summary judgment and adjudication were heard in 2023. Thus, this case appears ready for trial. The Court plans to re-set this case for jury trial as soon as possible.

The Court sets a trial setting conference for August 27, 2026, at 8:30a.m. Appearances by Zoom are acceptable. At least five court days before the hearing, the parties shall file and serve trial setting conference statements that address the following points: (1) when is the earliest the parties will be ready for trial, (2) the estimate trial length, (3) do the parties plan to proceed with a jury trial (as originally scheduled) or a court trial, (4) any dates the parties are unavailable for trial in the next 12 months and (5) is there any concern with the 5 year statute?

13. 9:00 AM CASE NUMBER: MSC20-02183
CASE NAME: GARY ELLIS VS. ARB, INC.
COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:
TENTATIVE RULING:*

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on September 15, 2025.

Upon review of the compliance report filed by Plaintiff and Co-Class Counsel, and the declaration filed by Kevin Lee of Phoenix Settlement Administrators certifying disbursement filed on July 27, 2026, the

Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of $ $18,976,72 to Plaintiff's Counsel.
2. The Court orders the release of $198,209.42 representing uncashed checks that remains to be distributed to Legal Aid at Work, the designated *cy pres*.
3. Disbursements shall be made no later than thirty (30) days from the date of this ruling.
4. No appearance is required at the hearing on August 5, 2026.

14. 9:00 AM CASE NUMBER: MSC20-02432
CASE NAME: PLASCENIA VS THE COUNTER WALNUT CREEK LP
COMPLIANCE HEARING ON SETTLEMENT SET BY THE COURTROOM.
FILED BY:
TENTATIVE RULING:*

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on August 11, 2025.

Upon review of the compliance report filed by Plaintiffs Pedro Negrete Plascencia and Nicole Anaya, individuals and on behalf of other persons similarly situated, through Class Counsel, and the declaration filed by Mayra Gonzalez of Phoenix Settlement Administrators certifying disbursement filed on July 28, 2026, the Court determines that Plaintiff has complied with the Court's orders.

Good cause appearing, the Court makes the following orders:

1. The Court orders the release of the 5% retention of attorney's fees in the amount of $ $ $3,582.98 to Plaintiffs' Class Counsel.
2. The Court orders the release of $40,203.85representing uncashed checks that remains to be distributed to Legal Aid at Work, the designated *cy pres*.
3. Disbursements shall be made no later than thirty (30) days from the date of this ruling.
4. No appearance is required at the hearing on August 5, 2026.

15. 9:00 AM CASE NUMBER: MSC21-01549
CASE NAME: HALATOA VS DIABLO COUNTRY CLUB
FINAL APPROVAL SET BY THE COURTROOM
FILED BY:
TENTATIVE RULING:*
Summary
Plaintiffs Sunia Halatoa, Harmesh Bangar, individually and on behalf of others similarly situated, filed a

Motion for Final Approval Order and Judgment of the PAGA settlement against Defendant Diablo Country Club. The Motion is granted as set forth herein. No appearance is required at the August 5, 2026 hearing, provided that Plaintiff's counsel complies with the proposed order.

Background

The Settlement Agreement resolves a class action and Private Attorneys General Act ("PAGA") action brought by Plaintiff Harmesh Bangar against Defendant Diablo Country Club. The Settlement Class consists of all individuals employed by Defendant in California classified as non-exempt employees at any time during the Class Period of July 26, 2017 through December 15, 2025, encompassing approximately 830 Class Members. The Aggrieved Employee group for PAGA purposes includes non-exempt employees during the PAGA Period of July 15, 2020 through December 15, 2025. Defendant has agreed to pay a Gross Settlement Amount of $840,000.00 on a non-reversionary basis, with the employer's share of payroll taxes paid separately.

The Gross Settlement Amount is allocated as follows: (1) $280,000.00 (one-third of the Gross Settlement Amount) to Class Counsel as attorneys' fees; (2) $15,286.35 to Class Counsel for reimbursement of litigation costs and expenses; (3) $7,500.00 to Plaintiff Bangar as a Class Representative Service Payment; (4) $10,500.00 to Phoenix Settlement Administrators for administration expenses; and (5) $125,000.00 for PAGA penalties. Of the PAGA penalties, 75% ($93,750.00) shall be paid to the California Labor and Workforce Development Agency, and 25% ($31,250.00) shall be distributed to Aggrieved Employees. The remaining Net Settlement Amount of approximately $401,713.65 shall be distributed to Participating Class Members (those who do not opt out).

Individual Class Payments shall be calculated on a *pro rata* basis according to Workweeks worked during the Class Period. The Settlement Administrator shall divide the Net Settlement Amount by the total Workweeks of all Participating Class Members to determine a Final Workweek Value, then multiply each Participating Class Member's individual Workweeks by that value. Individual PAGA Payments shall be calculated similarly based on PAGA Pay Periods worked during the PAGA Period, with the $31,250.00 allocated to Aggrieved Employees divided by total PAGA Pay Periods. Based on current estimates, the highest Individual Class Payment is approximately $3,388.29 and the average is approximately $478.31; the highest Individual PAGA Payment is approximately $285.23 and the average is approximately $47.86.

Individual Class Payments shall be allocated as 20% wages (reported on IRS Form W-2) and 80% non-wages, expense reimbursement, interest, and penalties (reported on IRS Form 1099), with appropriate tax withholdings deducted from the wage portion. Individual PAGA Payments shall be allocated as 100% penalties (reported on IRS Form 1099). Defendant shall pay the employer's share of payroll taxes on the wage portion in addition to the Gross Settlement Amount. All payments shall be issued within fourteen days of the funding of the Gross Settlement Amount, and checks shall remain valid for 180 days from mailing.

The Court-approved Class Notice was mailed to all 830 Class Members on February 2, 2026, with a 60-day response deadline of April 3, 2026. The Notice informed Class Members of their right to object, opt out, or dispute their Workweeks/PAGA Pay Periods. As of the Response Deadline, the Settlement Administrator received zero Requests for Exclusion, zero Notices of Objection, and zero Workweek disputes. One additional Class Member was identified during the response period and provided notice, bringing the total to 830 Class Members.

The Settlement is non-reversionary; no portion of the Gross Settlement Amount shall revert to Defendant. Any Individual Settlement Payment or Individual PAGA Payment checks that are not cashed within 180 days shall be canceled, and the associated funds shall be distributed as cy pres to California Rural Legal Assistance, Inc. All Participating Class Members and Aggrieved Employees shall be bound by the Settlement terms regardless of whether they negotiate their checks.

The Settlement constitutes a full and final resolution of all Released Class Claims and Released PAGA Claims, including claims arising under the California Labor Code and Business and Professions Code sections alleged in the operative pleadings. The Settlement is the product of arm's-length negotiations conducted through a full-day mediation with experienced mediator Todd A. Smith, Esq., following extensive formal and informal discovery, investigation, and exchange of thousands of pages of documents and data between the Parties.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees $280,000.00, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme

Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (*Id*., at 505.)

Counsel's declaration indicates that 287.50 hours of work were expended by the class counsel in this case, at a blended rate of $850 per hour. This results in an imputed multiplier of 1.15x. This multiplier is relatively standard for this type of case, in this Court's experience.

Litigation costs of $15,286.35 are reasonable and are approved. Settlement administration costs of $10,500.00 are reasonable and are approved. The requested representative payment of $7,500 for plaintiff is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that she spent time speaking with my attorneys about the case, providing attorneys with documents and information concerning the case, and also describing policies, practices, and procedures of Defendant.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **granted**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on August 5, 2026.

16. 9:00 AM CASE NUMBER: MSC21-01737
CASE NAME: AUSTIN CUPIT VS IMPERIAL PARKING
FINAL APPROVAL HEARING SET BY THE COURTROOM
FILED BY:
TENTATIVE RULING:

Summary

Plaintiffs Austin Cupit and Andrew Caro ("Plaintiffs") bring this Motion for Final Approval of Class Action and PAGA settlement with Defendants Imperial Parking (U.S.), LLC, AmeriPark, LLC, Lanier Parking Meter Services, LLC and REEF Global, LLC. ("Defendants"), together referred to as Parties. The Motion is granted provided Counsel complies with the proposed order herein. No appearance is required at the hearing on August 5, 2026.

Background
The Settlement Agreement resolves a class action and Private Attorneys General Act ("PAGA") action brought by Plaintiffs Austin Cupit and Andrew Caro against Defendants Imperial Parking (U.S.), LLC, AmeriPark, LLC, Lanier Parking Meter Services, LLC, and REEF Global, LLC. The Settlement Class consists of all current and former hourly-paid or non-exempt employees who worked for any Defendant in California during the Class Periods of August 20, 2017 through February 13, 2024, encompassing approximately 3,196 Class Members. The Aggrieved Employee group for PAGA purposes includes non-exempt employees during the PAGA Period of November 11, 2021 through February 13, 2024, encompassing approximately 1,086 PAGA Members. Defendants have agreed to pay a Gross Settlement Sum of $7,400,000.00 on a non-reversionary basis, to be paid in two installments: 66% ($4,884,000.00) within 180 days of Final Approval, and 34% ($2,516,000.00) within 360 days of Final Approval, with Defendants' share of payroll taxes paid separately.

The Gross Settlement Sum is allocated as follows: (1) $2,590,000.00 (thirty-five percent of the Gross Settlement Sum) to Class Counsel as attorneys' fees; (2) $26,131.10 to Class Counsel for reimbursement of litigation costs and expenses; (3) $12,500.00 each to Plaintiffs Austin Cupit and Andrew Caro as Enhancement and General Release Payments; (4) $27,500.00 to Phoenix Class Action Administration Solutions for administration costs; and (5) $350,000.00 for PAGA penalties. Of the PAGA penalties, 75% ($262,500.00) shall be paid to the California Labor and Workforce Development Agency, and 25% ($87,500.00) shall be distributed to PAGA Members. The remaining Net Settlement Amount of approximately $4,381,368.90 shall be distributed to Settlement Class Members (those who do not opt out).

Individual Settlement Payments shall be calculated on a *pro rata* basis according to Workweeks worked during the Class Period. The Settlement Administrator shall divide the Net Settlement Amount by the total Workweeks of all Settlement Class Members to determine a Final Workweek Value, then multiply each Settlement Class Member's individual Workweeks by that value. Individual PAGA Payments shall be calculated similarly based on Workweeks worked during the PAGA Period. Based on current estimates, the highest Individual Settlement Payment is approximately $6,526.84 and the average is approximately $1,371.32; the highest Individual PAGA Payment is approximately $223.99 and the average is approximately $80.57.

Individual Settlement Payments shall be allocated as 20% wages (reported on IRS Form W-2) and 80% interest and penalties (reported on IRS Form 1099), with appropriate tax withholdings deducted from the wage portion. Individual PAGA Payments shall be allocated as 100% penalties (reported on IRS Form 1099). Defendants shall pay the employer's share of payroll taxes on the wage portion in addition to the Gross Settlement Sum. All payments shall be issued within seven days following the funding of each installment, and checks shall remain valid for 180 days from mailing. Uncashed funds shall be distributed to the California Controller's Unclaimed Property Fund in the names of the individuals to whom the checks were originally issued.

The Court-approved Class Notice was mailed to all 3,196 Class Members on November 17, 2025, with a 60-day response deadline of January 16, 2026 (extended to January 31, 2026 for re-mailed notices). The Notice informed Class Members of their right to object, opt out, or dispute their Workweeks. As of the Response Deadline, the Settlement Administrator received zero Notices of Objection and one

Request for Exclusion. The Settlement is non-reversionary; no portion of the Gross Settlement Sum shall revert to Defendants. All Settlement Class Members and PAGA Members shall be bound by the Settlement terms regardless of whether they negotiate their checks. The Settlement constitutes a full and final resolution of all Released Class Claims and Released PAGA Claims, including claims arising under the California Labor Code and Business and Professions Code sections alleged in the operative pleadings.

Analysis

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

According to the Declaration of Shani O. Zakay of Zakay Law Group, APLC, the firm purports to have extensive experience in complex wage-and-hour class action litigation. The declaration establishes that Zakay Law Group attorneys have been awarded attorneys' fees at rates ranging from $550 to $800 per hour for similar legal services performed in comparable matters. The declaration documents that Zakay Law Group expended 61.10 hours litigating this matter, performing tasks including case strategy and analysis, legal research, drafting and revising pleadings and settlement papers, and preparing for and attending mediation and settlement negotiations.

The Zakay Declaration supports the lodestar cross-check methodology used to validate the requested $2,590,000.00 fee award (35% of the Gross Settlement Sum). Combined with the declarations of co-counsel, the lodestar calculation applies a blended hourly rate of $850 to the 603.10 total hours expended by all Class Counsel, yielding a base lodestar of $495,005.00. The declaration justifies applying a risk multiplier of 5.24 to this base lodestar, resulting in an enhanced lodestar of $2,593,826.20—closely approximating the requested fee award. This multiplier accounts for the contingent nature of the representation, the risk of non-recovery, the complexity of the wage-and-hour claims, the preclusion of other employment, and the substantial results achieved for the Class and the State of California.

Litigation costs of $26,131.10 are reasonable and are approved. Settlement administration costs of $27,500.00 are reasonable and are approved.

The award of $12,500.00 each to Plaintiffs Austin Cupit and Andrew Caro as enhancement and General Release Payments for plaintiffs is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff Austin Cupit attests that he spent at least 10 hours on the case and understood the risks of and strategies involved in this litigation.

Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

<u>Ruling</u>

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is **<u>granted</u>**.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on August 5, 2026.

17. 9:00 AM CASE NUMBER: MSC21-01963
CASE NAME: KNIGHT VS HONDA
FILED BY DEFENDANT AMERICAN HONDA MOTOR CO., INC.
FILED BY:
<u>*TENTATIVE RULING:*</u>

Before the Court is a motion by defendant American Honda Motor Co., Inc. for summary judgment, or in the alternative, summary adjudication. For the reasons set forth, the motion in its entirety is **<u>denied</u>**.

Background

Plaintiff alleges she was injured by a 2017 Honda CRV when she was trying to cross Kirker Pass. (Compl. ¶ 11.) On September 27, 2021, she filed her complaint initiating this action. The complaint includes causes of action for strict products liability, negligent failure to warn, negligent design and manufacture, negligence (post-sale), and negligence. A jury trial is scheduled for September 8, 2026, a date set that was set on January 15, 2026 at a case management/trial setting conference after the parties reported that mediation had been unsuccessful in resolving the case.

American Honda Motor Co., Inc. was added as defendant Doe 1 by a stipulation filed on April 26, 2022. Other Honda corporate entities named in the complaint were subsequently dismissed without prejudice on May 20, 2022. American Honda moves for summary judgment. Plaintiff opposes the motion on procedural grounds because the motion was filed and served less than 81 days prior to the scheduled hearing.

Legal Standards at Issue for Ruling on the Motion

Effective January 1, 2025, the summary judgment statute, Code of Civil Procedure section 437c, was amended in several respects, including the time required for notice of the motion. Code of Civil Procedure section 437c(a) in effect since 2025 provides: "Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days. (Code Civ. Proc. § 437c(a)(2) [emphasis added].) The statute also imposes a requirement that the motion "shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise." (Code Civ. Proc. § 437c(a)(3).)

Analysis

On May 19, 2026, American Honda requested a reservation for a hearing on a motion for summary judgment. That day, the Court reserved a hearing for August 5, 2026, which was the latest law and motion calendar date for Department 16 that was at least 30 days prior to the trial date of September 8, 2026. American Honda filed its motion for summary judgment and served its motion papers on that date by electronic mail and by personal delivery. (POS filed 6/10/2026.)

On June 1, 2026, American Honda filed an *ex parte* application to continue the trial date or alternatively, specially setting the hearing on the motion for summary judgment within the 30-day period prior to the scheduled trial. Plaintiff opposed it, and the Court denied the *ex parte* application. Among other things, the Court noted that the trial date was set in January 2026, months before the summary judgment motion had to be filed in order to be heard more than 30 days before trial, and that the date was selected in light of the five-year deadline for commencing trial. (Min. Order filed 6/3/2026.) The Court also found that American Honda had not demonstrated it had been diligent in filing the summary judgment motion or an excuse for not having filed the motion until May 19, 2026. (Min. Order filed 6/3/2026.) The Court of Appeal **denied** a petition for writ of mandate filed by American Honda, challenging the ruling on the *ex parte* application. (Order from 1st DCA filed

6/25/2026.)

A. <u>There Is No Dispute that Defendant Failed to Provide the 81-Day Statutory Notice of the Motion</u>

The hearing date of August 5, 2026 is 78 days from May 19, 2026. Even with personal service, Plaintiff was not given the 81-day notice and service of the motion and supporting papers mandated by Code of Civil Procedure section 437c(a). Counsel for Plaintiff has declared that at no time did Plaintiff consent to shortened notice on the motion. (McDevitt Decl. ¶ 4.)

Courts addressing the version of the summary judgment statute in effect through 2024 have concluded based on the language of the statute and for policy reasons that the minimum statutory notice period provided in Code of Civil Procedure section 437c, plus additional notice depending on the manner of service of the notice of the motion, cannot be waived or reduced by the Court. (*Cuff v. Grossmont Union High School Dist.* (2013) 221 Cal.App.4th 582, 595-596 [statutory language as to minimum notice for summary judgment motions is mandatory, not directive]; *Urshan v. Musicians' Credit Union* (2004) 120 Cal.App.4th 758, 764, 768 [court has no authority to shorten the notice period for a motion for summary judgment as the statutory notice period is mandatory]; *McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 115 [stating "The subdivision does not contain any language authorizing courts to shorten the 75-day notice period."].)

The opposing party does not have to show prejudice for the Court to find the notice defective; the notice is invalid unless the opposing party expressly consents to a shorter notice period. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267-1268.) The inadequacy of the notice and service cannot be cured by continuing the hearing for the additional number of days that would total the full statutory notice period. (*Id.*) While there can be some question of waiver of the required statutory notice period if a party files a substantive opposition to the motion despite the inadequate notice, Plaintiff did not file a substantive opposition in this case. (*Compare to Carlton v. Quint* (2000) 77 Cal.App.4th 690, 697.)

B. <u>Defendant's Contentions in Its Reply Brief</u>

American Honda argues that the Court should disregard the line of authority cited above because the failure to provide the statutorily mandated notice period for a summary judgment is overridden by Code of Civil Procedure section 475. Defendant contends that Code of Civil Procedure section 475 mandates that the Court disregard procedural errors, including the failure to provide adequate notice of a summary judgment hearing, unless the opposing party demonstrates prejudice. Defendant also cites Article VI, section 13 of the California Constitution as further support for this proposition, as well as three summary judgment cases in which American Honda suggests the moving party did not comply with the notice requirements of Code of Civil Procedure section 437c, but the opposing party did not demonstrate any prejudice from the deficient notice.

Code of Civil Procedure section 475 states: "The court must, in every stage of an action, disregard any error, improper ruling, instruction, or defect, in the pleadings or proceedings <u>which, in the opinion of said court, does not affect the substantial rights of the parties</u>. <u>No judgment, decision, or decree shall be reversed or affected</u> by reason of any error, ruling, instruction, or defect, unless it shall appear from the record that such error, ruling, instruction, or defect was prejudicial, and also that by reason of such error, ruling, instruction, or defect, the said party complaining or appealing sustained and suffered substantial injury, and that a different result would have been probable if such error, ruling, instruction, or defect had not occurred or existed. There shall be no presumption that error is prejudicial, or that injury was done if error is shown." (Emphasis added.) Code of Civil Procedure section 475 appears to be a statutory formulation of the harmless error doctrine.

Article VI, section 13 of the California Constitution similarly provides, "No judgment shall be set aside, or new trial granted, in any cause, on the ground of misdirection of the jury, or of the improper admission or rejection of evidence, or for any error as to any matter of pleading, or for any error as to any matter of procedure, unless, after an examination of the entire cause, including the evidence, the court shall be of the opinion that the error complained of has resulted in a miscarriage of justice." This provision of the California Constitution essentially states the "harmless error" doctrine.

In the opinion of the Court, informed by the case law summarized above, the failure to provide the full 81-day statutory notice period for a motion for summary judgment affects the substantial rights of Plaintiff in this case. The purpose of the mandated statutory notice period for summary judgments is to provide the opposing party adequate opportunity to prepare opposition to the motion, which in this case was filed and set for hearing on the eve of trial after four years and eight months of litigation.

The purpose of the mandated notice and service period under the summary judgment statute was discussed by the Court of Appeal in *McMahon*: "Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition." (*McMahon*, supra, 106 Cal.App.4th at 117-18.) Notably, the Legislature amended the summary judgment statute in 2024 and <u>extended</u> the 75-day notice period to 81 days, without making other changes to the statute to allow the Court to shorten the notice and service period mandated by the statute, in the face of a body of case law holding the statutory notice period is the required minimum and is mandated.

Responding to a summary judgment motion set and served without the full statutory notice period would divert litigation resources to defend the motion as Plaintiff prepares to prosecute the case at trial. The record is clear that Plaintiff relied on the line of case law construing the summary judgment statute as mandating as a minimum that Plaintiff be provided the statutory notice period, and Plaintiff did not file a substantive opposition to the motion on the merits. (*Compare to Carlton, supra,* 77 Cal.App.4th at 697.) To accept American Honda's argument would be to convert the mandatory statutory minimum notice period for a summary judgment motion into a suggestion, converting what the Courts have construed as a statutory mandate requiring strict compliance given the nature of the relief sought to one in which "substantial" compliance is sufficient. Such a position is inconsistent with the language of the statute, the purposes of the notice period, and the case law binding on the Court addressed above.

Further, American Honda's position that the opposing party is required to show prejudice as a result of the moving party's noncompliance with the statutorily mandated notice and service requirements of Code of Civil Procedure section 437c is contrary to the case law. The opposing party does not have to show prejudice for the Court to find the notice defective; the notice is invalid unless the opposing party expressly consents to a shorter notice period. (*Robinson v. Woods* (2008) 168 Cal.App.4th 1258, 1267 [expressly holding the opposing party does "*not have to claim or show prejudice* because they *did not address the merits*." (italics in original)].)

C. Defendant's Cases Are Distinguishable

American Honda has not cited any case which has held that Code of Civil Procedure section 475 can override the specific statutory notice and service deadlines of Code of Civil Procedure section 437c. Defendant's reply cites cases in the context of other substantive motions, not summary judgment motions, such as a noticed motion for an attachment and a noticed motion for sanctions, which found no prejudice in the trial court ruling on the motion though there was noncompliance with the notice period specified. (*See, e.g., Loeb & Loeb v. Beverly Glen Music* (1985) 166 Cal. App. 3d 1110, 1115-1116 [deficient notice for June 1 hearing; trial court set a noticed hearing on the opposing party's motion to vacate the June 1 attachment order for June 18 and then a merits hearing on the attachment on July 3, at which the Court noted the opposing party was able to present a full opposition to the attachment on the merits and the party seeking the attachment remained the party with the burden of proving the grounds giving it a right to attach under the statute, so there was no prejudice to the opposing party]; *In re Marriage of Falcone and Fyke* (2008) 164 Cal.App.4th 814-828-829 [appealing award of order on third sanctions motion against appellant under Family Code 271 where notice was one day short under Code of Civil Procedure section 1005, but appellant "filed points and authorities with supporting exhibits and a declaration, addressing not only the adequacy of the notice but also raising issues concerning whether counsel's declaration had been signed under penalty of perjury, clarifying the substance of her new trial motion and arguing its merits, defending the objections counsel had cited as frivolous, attacking counsel's credibility, and attacking the merits of the sanctions motion itself," such that the Court found no prejudice from the one-day short notice].)

Defendant cites three cases involving summary judgment motions, each of which are distinguishable, and none of which make compliance with the mandatory statutory notice period of Code of Civil Procedure section 437c optional by requiring the opposing party to prove prejudice. In *Lackner v. North* (2006) 135 Cal. App. 4th 1188, North's motion for summary adjudication was dated August 8, 2003 and the hearing was originally set for September 19, 2003, but on August 18, 2003, Plaintiff Lackner moved to continue the hearing on the motion, which was granted in part, and the motion was rescheduled to October 31, 2003, 84 days after the motion was filed. (*Id.* at 1208-1209.) The Court concluded that "the notice requirement is measured from the date notice is served to the date of the actual hearing, and not the originally scheduled hearing." (*Id.* at 1209.) The Court concluded the purposes of the 75-day notice period were served under the circumstances based on the plaintiff's successful request for continuance of the hearing and the actual hearing date on the motion more than 75 days after service of the motion. (*Id.* at 1208-1209.) Further, in that case unlike this, the plaintiff "fully responded to North's motion for summary adjudication of her punitive damages claim." (*Id.* at 1209.) For these reasons, the Court of Appeal rejected her claim of error on the timing of the summary adjudication hearing.

In *National Grange of Order of Patrons of Husbandry v. California Guild* (2017) 17 Cal. App. 5th 1130, the plaintiff made a motion for summary judgment on an amended pleading which had not been allowed and filed at the time the summary judgment motion was served, though the motion for leave to amend had been filed. The opposing party argued that the motion was defective because the amended pleading on which the motion was a "supporting paper" that had to be served with the summary judgment motion. The Court held that on appeal, under Code of Civil Procedure section 475 and Article VI, Section 13 of the California Constitution, the appellant failed to show prejudicial error so as to warrant reversal of the trial court's judgment because the summary judgment proceeding had been improper based on the later filing and service of the amended complaint. (*Id.* at 1147-1148.) The opposing/appealing party failed to identify any material difference between the prior complaint and the amended complaint on which the summary judgment motion was based. (*Id.*)

Among the circumstances the Court considered in that case were that the actual timing of the hearing on the merits of summary judgment motion was more than three months after the original hearing date, and that the trial court was willing to allow the opposing party to file supplemental briefing, which it failed to take advantage of. (*Id.* at 1147.) After a long analysis of the procedural and factual circumstances in that case, the Court summarized its ruling as follows: "So, to summarize: Under the circumstances of this case, defendants have not shown any prejudice from the fact that the trial court allowed the National Grange to seek summary judgment on an amended complaint that was not yet operative when the summary judgment motion was filed or from the fact that the version of the complaint on which the National Grange sought summary judgment was not served with the moving papers. On this record, the only reasonable conclusion is that defendants had a full and fair opportunity to dispute the material allegations leveled by the National Grange in its complaint for declaratory relief. Thus, no prejudicial error has been shown." (*Id*. at 1144-1148.)

In *Yanez v. Vasquez* (2021) 65 Cal. App. 5th Supp. 1, the summary judgment motion was served by the defendant by overnight mail one day short of the required notice, taking into account the two court days added for overnight mail service. The Court held that the plaintiff waived the notice defect in two ways; first, by raising inadequate notice but filing a merits opposition and attending the hearing on the motion without anything in the record showing he requested a continuance of the hearing, and second, by the lack of a record of the trial court ruling on the notice issue, such as a minute order addressing the issue, and the lack of a record of the oral proceedings, such that the "failure to obtain a ruling is an independent waiver of the appellate claim. [Citations omitted.]" (*Id*. at 8-11.) These circumstances are distinguishable from those before the Court in this case.

Conclusion and Ruling

Under the circumstances of this case, there can be no question that Plaintiff did not waive the procedural defect of lack of the statutory notice. Plaintiff has not filed a substantive opposition to the motion on the merits. The notice and service provisions of Code of Civil Procedure section 437c and the directly applicable case law cited in Section A above unequivocally make American Honda's motion procedurally defective and late-served, warranting denial on that basis.

The Court rejects American Honda's argument that under the circumstances of this case, the Court must ignore the defective notice because Plaintiff was obligated to prove prejudice. (*Robinson, supra,* 168 Cal.App.4th at 1267.) American Honda's four-month delay after trial was set before filing and serving the motion based on the available hearing date outside the 30-day before trial deadline is clearly prejudicial in any event in this case. The five-year deadline to bring the case to trial is looming.

The Court set a firm trial date eight months after the January 15, 2026 trial setting conference at which American Honda participated. American Honda showed neither diligence nor good cause for moving the summary judgment hearing within 30-days of trial, as the Court previously found, a finding that was well-supported and affirmed on American Honda's writ petition. Plaintiff has no obligation under the circumstances either to file a merits opposition despite the clearly, undisputedly deficient statutory notice, or to accede to a continuance of the hearing or a continuance of the trial and extension of the five-year deadline to accommodate American Honda's untimely motion.

For these reasons, the motion is **denied.**

18. 9:00 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
***HEARING ON MOTION IN RE: TERMINATING SANCTIONS AGAINST DEFENDANT SHANNA M. FARRELL**
FILED BY: NIST, WILLIAM G
****TENTATIVE RULING:****

Summary

This tentative ruling is for Lines 18 and 23. Plaintiffs William and Mari Nist ("Plaintiffs" or "Nists") have filed two discovery motions against Defendant / Cross-Complainant Shanna M. Farrell ("Farrell"). Line 18 seeks terminating sanctions. Line 23 seeks an order compelling Farrell to attend a deposition.

The Court **grants** the Motion for Terminating Sanctions and **grants** the Motion to Compel Deposition of Farrell as set forth herein.

Background

This action arises from an easement dispute between Plaintiffs and Farrell. Plaintiffs served discovery requests seeking information regarding the parties' easement dispute, Farrell's defenses, alleged misconduct, and damages. Farrell responded with boilerplate objections and evasive answers, forcing Plaintiffs to file a motion to compel. On April 30, 2025, the Court granted Plaintiffs' motion to compel in substantial part, ordering Farrell to provide code-compliant verified responses within fifteen days and imposing monetary sanctions of $4,703.77 against Farrell for misusing the discovery process without substantial justification.

Farrell failed to comply with the Court's order. She did not pay the monetary sanctions, necessitating enforcement proceedings. On March 12, 2026, the Court ordered Farrell to appear personally on June 16, 2026, for a debtor's examination to provide information to enforce the money judgment. Although Farrell appeared for the examination, she was unresponsive and failed to provide meaningful information. The Court thereafter ordered Farrell in contempt. Farrell was appointed counsel from the Court's conflict panel and was arraigned for her contempt proceedings. A pre-trial conference on the contempt matter is scheduled for November 6, 2026. Trial for this matter is scheduled for September 14, 2026.

Farrell's discovery abuse extends to her repeated failure to appear for properly noticed depositions. Plaintiffs first noticed Farrell's deposition for February 6, 2025. After defense counsel raised availability issues, Plaintiffs agreed to reschedule. On June 3, 2025, defense counsel confirmed July 15, 2025, as an available date, but on July 11, 2025, counsel advised that Farrell would not be produced. Following extensive meet-and-confer efforts, Plaintiffs noticed Farrell's deposition for January 29, 2026, a date defense counsel had confirmed. On January 27, 2026, less than forty-eight hours before the scheduled deposition, defense counsel unilaterally canceled, citing an unspecified "all-day obligation" out of the County, without serving written objections, moving for a protective order, or providing alternate dates.

On April 8, 2026, Plaintiffs again properly noticed Farrell's deposition for 8:30 a.m. at Veritext in Oakland, California. Plaintiffs, their counsel, the deposition officer, and videographer all appeared prepared to proceed. At 8:02 a.m., defense counsel advised that Farrell would not attend due to an "acute medical condition." The proceeding went on the record at 9:40 a.m. to document Farrell's nonappearance, with Plaintiffs' counsel confirming on the record that Farrell was not present. Farrell has failed to appear at every noticed deposition, despite Plaintiffs' repeated efforts to coordinate dates and their personal appearances prepared to examine her.

Plaintiff assert, and the Court finds, that Farrell is not a peripheral witness. She is a named defendant, cross-complainant, and central actor in the claims and defenses in this case. Her deposition testimony is essential to address liability, causation, damages, access denial, obstruction, emotional distress issues, her asserted defenses, and her crossclaims. Plaintiffs represent that they cannot fairly prepare for trial, which is set for September 14, 2026, without Farrell's sworn testimony. Each missed deposition has forced Plaintiffs to incur unnecessary attorney time, preparation costs, appearance expenses, court reporter fees, and videographer costs, while depriving them of critical evidence needed for mediation, dispositive motions, and trial preparation.

The Court finds that Farrell's conduct reflects a sustained pattern of defiance that has interfered with discovery, enforcement, case preparation, and trial readiness. Lesser sanctions have already been imposed and have proven ineffective. The Court's monetary sanctions remain unsatisfied, and Farrell's unresponsiveness during the debtor's examination resulted in a contempt finding. Farrell's repeated deposition non-appearances are troubling to the Court. Her failure to appear on April 8, 2026, after Plaintiffs and their counsel appeared in person demonstrate that ordinary discovery enforcement has failed and that terminating sanctions are necessary to protect Plaintiffs and preserve the integrity of these litigation proceedings.

<u>Analysis</u>

<u>Farrell is Self-Represented but is Subject to the Discovery Rules</u>
The Court is aware that Farrell is proceeding without an attorney in her lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also R*appleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assura*nce (1991) 234 Cal.App.3d 117, 121 (self-represented

parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "'[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. … [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Farrell was misled by the Court or Defendants. Indeed, the Court's prior rulings and orders to comply with her discovery obligations in previous motions set forth compliance dates. She failed to do so.

<u>Farrell Did not File a Timely Opposition to these Motions</u>
California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."]; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S*. (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc*. (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779,784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].)
Applied here, the Court notes that Farrell, through her former counsel, filed an opposition to Plaintiffs' application for an *ex parte* order shortening time to hear the motions, but did not file an opposition to either motions. The Court finds that Farrell's failure to timely oppose both motions is a deemed to be her consent to the granting of both motions.

<u>Legal Standard for Terminating Sanctions</u>
Under Code of Civil Procedure section 2023.030(d), the Court may impose terminating sanctions by striking out pleadings, staying further proceedings until a discovery order is obeyed, dismissing the action or any part thereof, or rendering judgment by default against the party engaging in misuse of the discovery process. Misuse of the discovery process includes "[f]ailing to respond or to submit to an authorized method of discovery" and "[d]isobeying a court order to provide discovery." (Code Civ. Proc., §§ 2023.010(d), (g).)

California law requires that discovery sanctions be tailored to the harm caused and should not exceed what is required to protect the party harmed by the misuse. (*Lang v. Hochman* (2000) 77 Cal.App.4th 1225, 1229.) While the statutory scheme generally contemplates an incremental approach with terminating sanctions as a last resort, trial courts may impose terminating sanctions as a first measure in extreme cases, or where the record shows lesser sanctions would be ineffective. (*Department of*

Forestry & Fire Protection v. Howell (2017) 18 Cal.App.5th 154, 191-192; *Atlas v. Davidyan* (2025) 113 Cal.App.5th 1086, 1095.)

Here, the record establishes that lesser sanctions have been tried and failed. The Court previously found that Farrell misused the discovery process by making boilerplate objections, failing to provide further responses after meet-and-confer efforts, and opposing Plaintiffs' discovery motion without substantial justification, and imposed monetary sanctions of $4,703.77. Farrell's noncompliance continued unabated after that order. She failed to pay the court-ordered sanctions, necessitating enforcement proceedings. When ordered for a debtor's examination to provide financial information, Farrell appeared but was unresponsive, frustrating the purpose of the examination and resulting in a contempt finding. This pattern demonstrates that additional monetary sanctions would be insufficient to secure compliance. (*Padron v. Watchtower Bible & Tract Society of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1254; *Rodriguez v. WNT, Inc*. (2025) 116 Cal.App.5th 791.)

Willfulness may be inferred from repeated failures to comply, continued resistance after court intervention, and conduct showing that the noncompliance is not accidental. (*Sauer v. Superior Court* (1987) 195 Cal.App.3d 213, 228.) The Court finds that Farrell's repeated deposition nonappearances on February 6, 2025, July 15, 2025, January 29, 2026, and April 8, 2026 reflect a conscious and intentional failure to participate in discovery, not accidental or isolated lapses. The record demonstrates that on April 8, 2026, Plaintiffs, their counsel, the deposition officer, and videographer all appeared prepared to proceed, while Farrell failed to appear, with notice of her absence coming only at 8:02 a.m. on the morning of the deposition. This sustained pattern of evasiveness, disregard of court orders, and resistance even after court intervention establishes the willfulness required for terminating sanctions. (*Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1102; *Creed-21 v. City of Wildomar* (2017) 18 Cal.App.5th 690, 701.)

The Court must also consider the totality of the circumstances, including the detriment to the propounding party and the number of formal and informal attempts to obtain discovery. (*Creed-21, supra*, 18 Cal.App.5th at 701; *Los Defensores, Inc. v. Gomez* (2014) 223 Cal.App.4th 377, 390) Farrell is a party and cross-complainant whose testimony is essential to liability, causation, damages, her defenses, and her crossclaims. Plaintiffs have repeatedly attempted to obtain her deposition, personally appearing on April 8, 2026, only to be met with nonappearance. With trial set for September 14, 2026, Farrell's refusal to appear for deposition has prejudiced Plaintiffs' ability to prepare for trial, obtain evidence for mediation, and present their case. Each missed deposition has forced Plaintiffs to incur unnecessary costs and fees without advancing discovery.

Terminating sanctions are proportionate to Farrell's conduct because her misconduct is repeated, willful, prejudicial, and resistant to lesser sanctions. (*Vallbona v. Springer* (1996) 43 Cal.App.4th 1525, 1545; *Doppes v. Bentley Motors, Inc*. (2009) 174 Cal.App.4th 967, 1003.) Where, as here, each lesser degree of sanction has failed and the party's discovery abuses are willful, preceded by a history of abuse, and unlikely to be cured by less severe sanctions, terminating sanctions are warranted. (*Rodriguez v. WNT, Inc. (*2025) 116 Cal.App.5th 791, 797; *Atlas v. Davidyan* (2025) 113 Cal.App.5th 1086, 1096.)

The Court finds that dismissing Farrell's cross-complaint against her will prevent her from using the Court's process affirmatively while refusing to comply with that same process and will protect

Plaintiffs from further prejudice as trial approaches.

Ruling

1. Plaintiffs' Motion for Terminating Sanctions Against Defendant Shanna M. Farrell is **granted**;
2. Defendant/Cross-Complainant Shanna M. Farrell's cross-complaint is **dismissed** with prejudice; Farrell is precluded from pursuing her cross-complaint against the Plaintiffs at trial.
3. Defendant /Cross-Complainant Shanna M. Farrell shall pay Plaintiffs' reasonable attorneys' fees and costs incurred in connection with both the Motion for Terminating Sanctions and the Motion to Compel Deposition. Plaintiff's counsel is ordered to submit a declaration in support of fees and costs incurred for both motions on or before the commencement of trial.
4. All trial, pretrial, and case-management dates affected by this Order shall be addressed at the trial readiness conference on September 8, 2026 at 8:30 a.m. Plaintiff shall provide the Court with a brief CMC statement outlining the trial and pre-trial matters affected by this order.
5. Plaintiffs' Motion to Compel the deposition of Shanna M. Farrell is **granted**. Farrell is ordered to make herself available for deposition on September 1, 2026 at 9:00 a.m. at a location to be noticed by Plaintiffs. The deposition shall be conducted in person and shall continue day-to-day, except holidays and weekends, from 9:00 a.m. until 4:00 p.m. until complete. The Parties may stipulate to other dates and times mutually available. Farrell's non-compliance with this order may subject her to fines of up to $100 per day not to exceed $1,500 pursuant to Cal. Code of Civ. Proc. § 177.5, or to further contempt proceedings.
6. Plaintiffs' counsel is ordered to prepare and e-file a proposed order conforming to this ruling no later than five (5) days from the date of this hearing and shall serve Farrell with the Order and File a Notice of Entry of Order.

19. 9:00 AM CASE NUMBER: MSC22-00329
CASE NAME: MARTINEZ VS LIMON LOCUST
***HEARING ON MOTION IN RE: COMPLIANCE HEARING SET BY THE COURTROOM**
FILED BY:
TENTATIVE RULING:*

This Compliance Hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement and Final Judgment filed on January 5, 2026

Upon review of the compliance report filed by Plaintiff Maria Vejar Martinez, an individual, and on behalf of other persons similarly situated, through Class Counsel, and the declaration filed by Amanda Howard of ILYM Group certifying disbursement filed on July 24, 2026, the Court determines that Plaintiff has complied with the Court's orders. No appearance is required at the hearing on August 5, 2026.

20. 9:00 AM CASE NUMBER: MSC22-00343
CASE NAME: JOEL ROBLES VS. GLOBAL SECURITY MANAGEMENT AGENCY INC A CALIFORNIA CORPORATION
***HEARING ON MOTION IN RE: FINAL APPROVAL SET BY THE COURTROOM**
FILED BY:
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Plaintiff Joel Robles, individually, and on behalf of others similarly situated, filed a motion seeking final approval of the class action and PAGA Settlement against Defendant Global Security Management Agency, Inc. The Motion is granted provided Counsel complies with the proposed order herein. No appearance is required at the hearing on August 5, 2026.

<u>Background</u>

<u>Salient Settlement Terms</u>
The Settlement Agreement resolves a class action and Private Attorneys General Act ("PAGA") action brought by Plaintiff Joel Robles against Defendant Global Security Management Agency, Inc. The Settlement Class consists of all current or former hourly-paid or non-exempt employees employed by Defendant in California during the Class Period of February 23, 2018 through October 23, 2023, encompassing 614 Class Members. The PAGA Period covers the same timeframe. Defendant has agreed to pay a Gross Settlement Amount of $750,000.00 on a non-reversionary basis, to be paid in two equal installments of $375,000.00 each. The first installment is due within fifteen days of the Effective Date or one year from August 24, 2023, whichever is later, and the second installment is due one year thereafter. Defendant shall pay its share of employer payroll taxes separately in addition to the Gross Settlement Amount.

The Gross Settlement Amount is allocated as follows: $262,500.00 (thirty-five percent) to Class Counsel as attorneys' fees; $10,766.13 to Class Counsel for reimbursement of litigation costs and expenses; $10,000.00 to Plaintiff Joel Robles as an Enhancement Payment; $13,716.00 to Simpluris, Inc. as Settlement Administration Costs; and $115,000.00 for PAGA penalties. Of the PAGA Amount, seventy-five percent ($86,250.00) shall be paid to the California Labor and Workforce Development Agency, and twenty-five percent ($28,750.00) shall be distributed to PAGA Employees. The remaining Net Settlement Amount of approximately $338,017.87 shall be distributed to Settlement Class Members who do not opt out.

Individual Settlement Payments shall be calculated on a pro rata basis according to Workweeks worked during the Class Period. The Settlement Administrator shall divide the Net Settlement Amount by the total Workweeks of all Settlement Class Members to determine a Final Workweek Value, then multiply each Settlement Class Member's individual Workweeks by that value. Individual PAGA Payments shall be calculated similarly based on Pay Periods worked during the PAGA Period. Based on current estimates, the highest Individual Settlement Payment is approximately $3,248.69 and the average is approximately $550.52; the highest Individual PAGA Payment is approximately $270.48 and the average is approximately $46.82.

Individual Settlement Payments shall be allocated as twenty percent wages (reported on IRS Form W-2) and eighty percent interest, penalties, and non-wage damages (reported on IRS Form 1099). The

Settlement Administrator shall withhold employee taxes from the wage portion. Individual PAGA Payments shall be allocated as one hundred percent penalties (reported on IRS Form 1099). Defendant shall pay the employer's share of payroll taxes on the wage portion in addition to the Gross Settlement Amount. All payments shall be issued within five days following each deposit of the Gross Settlement Amount installments, and checks shall remain valid for one hundred eighty days from mailing.

The Court-approved Class Notice was mailed to all 614 Class Members on November 21, 2025, with a forty-five-day response deadline of January 5, 2026. The Notice informed Class Members of their right to object, opt out, or dispute their Workweeks. As of the Response Deadline, the Settlement Administrator received zero written requests for exclusion and zero written objections. The Settlement is non-reversionary; no portion of the Gross Settlement Amount shall revert to Defendant. Any Individual Settlement Payment or Individual PAGA Payment checks not cashed within one hundred eighty days shall be canceled, and the associated funds shall be distributed to the California Controller's Unclaimed Property Fund. All Settlement Class Members and PAGA Employees shall be bound by the Settlement terms regardless of whether they negotiate their checks.

The Settlement constitutes a full and final resolution of all Released Class Claims and Released PAGA Claims, including claims arising under the California Labor Code and Business and Professions Code sections alleged in the operative pleadings. The Settlement is the product of arm's-length negotiations conducted through a full-day mediation with experienced mediator Brandon McKelvey, Esq., following extensive formal and informal discovery, investigation, and exchange of documents and data between the Parties.

<u>Analysis of Attorneys' Fees and Lodestar Multiplier</u>
Class Counsel seek attorneys' fees of $262,500.00, representing thirty-five percent of the $750,000.00 Gross Settlement Amount, which falls within the range of reasonableness for contingent fee awards in complex class actions. The lodestar cross-check analysis supports this request: Class Counsel collectively expended 267.90 hours (194.50 hours by Lawyers for Justice, PC and 73.4 hours by Sweeny Law, PC) at a blended hourly rate of $850 per hour, yielding a base lodestar of $227,715.00. Applying a modest multiplier of 1.15 produces an enhanced lodestar of $262,500.00, which precisely matches the percentage-based fee request. The Court finds that this 1.15 multiplier is conservative compared to the multipliers ranging from 2 to 5 or higher that courts routinely approve in similar wage-and-hour class actions and appropriately accounts for the contingent nature of the representation, the risk of non-recovery, the complexity of the claims, and the substantial results achieved for the Class and the State of California.

<u>Analysis</u>

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal's decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the "fair, reasonable, and adequate" standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess "the fairness of the settlement's allocation of civil penalties between the affected aggrieved employees[.]" (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Cost and fees

The Court finds the requested attorney's fees are reasonable and approved. See analysis above. Litigation costs of $10,766.13 are reasonable and are approved. Administration costs of $13,716.00 to Simpluris, Inc are reasonable and are approved.

The award of $10,000 each to Plaintiffs is reviewed now, under the criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Plaintiff attests that he spent over 20 hours on the case and understood the risks of and strategies involved in this litigation. Considering all of the factors, particularly the size of the settlement, the full requested payment is approved.

Ruling

1. The Court finds that the settlement is fair, reasonable, and adequate.
2. The motion is granted.
3. Counsel are directed to prepare an order reflecting this tentative ruling and the other findings in the previously submitted proposed order, attaching a copy of this ruling.
4. The judgment should identify the individual class member who is excluded, so that if they ever bring a claim, it can easily be determined that they are not bound by the settlement. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented.
5. Plaintiffs' counsel is ordered to schedule a compliance hearing with the clerk of the court no later than one year from the date of this hearing and is ordered to submit a compliance statement at least ten (10) court days before the compliance hearing date. 5% of the attorney's fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.
6. No appearance is required at the hearing on August 5, 2026.

21. 9:00 AM CASE NUMBER: PS25-1449
CASE NAME: SCOTT JACOBY VS. STEVEN CHAN
HEARING IN RE: NOTICE OF MTN AND MTN TO VACATE OR SET ASIDE THE JUDGMENT; DEC IN SUPPORT OF MTN
FILED BY: CHAN, STEVEN L.
TENTATIVE RULING:*
Summary

On May 19, 2026, Defendants Steven Chan and Anne Wong Chan ("Defendants") filed a Motion to Vacate or Set Aside the Judgment entered in favor of Plaintiff Scott Jacoby ("Plaintiff") on April 23, 2026. The Court having reviewed the moving papers, opposition, and the file herein; and good cause appearing; the Court hereby **denies** Defendants' motion.

Background
On April 23, 2026, the Court entered a stipulated judgment on the record in favor of Plaintiff and against Defendants regarding possession of real property located at 2205 Koa Court, Antioch, California 94509. The judgment, entered by agreement of the parties, and confirmed by the Court pursuant to Cal. Code of Civ. Proc. § 664.6,contained the following material terms:

1. Possession: Defendants were permitted to remain in possession of the property through no later than February 28, 2027, conditioned upon strict compliance with the payment obligations set forth herein;

2. Monthly Payments: Defendants were ordered to pay Plaintiff $1,200.00 per month, due on or before the 5th day of each month, commencing March 5, 2026, and continuing through February 28, 2027. Payments were to be deposited into Bank Account, opened by Plaintiff for the express purpose of accepting these payments;

3. Waiver of Rights: Defendants waived any right to further contest ownership or possession of the property, and waived any right to appeal or seek a stay of execution;

4. Conditional Masking: The judgment would remain masked and restricted from public view so long as Defendants remained in full compliance with the judgment's terms;

5. Vacatur Upon Compliance: Upon Defendants' full and faithful fulfillment of their obligations, Plaintiff would submit an ex parte application requesting the Court vacate the judgment and dismiss the action with prejudice;

6. Enforcement Upon Breach: If Defendants breached the judgment at any point before February 28, 2027, the case would be unmasked and a sheriff's lockout enforced forthwith;

7. Property Condition: Defendants agreed to vacate the property in "broom clean condition" and leave all fixtures in place, with the right to remove only the refrigerator, washer, and dryer upon vacating.

The Court questioned both Defendants on February 6, 2026. Defendant Anne Wong Chan was assisted by a certified Cantonese language interpreter. Both Defendants, under oath, testified that they understood the terms of the settlement agreement and understood that they were entering into a stipulated judgment. Such representations were made on the record. This Court made findings that the agreement is enforceable pursuant to the provisions of Cal. Code of Civ. Proc. § 664.6(a).

At the May 6, 2026 case management conference, Plaintiff sought to enforce the judgment, alleging that Defendants had failed to make the required monthly payments in violation of the judgment's terms. On July 9, 2026, the Court issued *an ex parte* order directing the issuance of a writ of possession and scheduling a sheriff's lockout, based on Defendants' material breach of the stipulated judgment.

<u>Analysis</u>

<u>Defendants are Self Represented Litigants</u>

The Court is aware that Defendants have been and continue to proceed without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also R*appleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assura*nce (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "'[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. … [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Defendants were misled by the Court or Plaintiff. While Defendants assert that there were procedural irregularities regarding the handling of their court papers, the Court does not find any irregularities that resulted in any prejudice to Defendants. Moreover, Defendants do not articulate any legal basis by which to challenge a judgment entered on April 23, 2026. Defendants have appeared in Court multiple times and the record contains admonishments by the Court advising Defendants to seek legal counsel, rather than filing motions which continue to relitigate this adjudicated case.

<u>Legal Standards for Relief from Judgment</u>

A. Relief Under Code of Civil Procedure Section 473

Code of Civil Procedure section 473 provides limited grounds for relief from judgments. The statute establishes two distinct mechanisms: (1) mandatory relief under subdivision (b) for defaults, default judgments, and dismissals based on attorney mistake, inadvertence, surprise, or neglect; and (2)discretionary relief under subdivision (b) for judgments taken against a party through the party's own mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473(b); *In re Marriage of Hock* (1999) 70 Cal.App.4th 1292, 1298.)

B. Mandatory Relief Is Limited to Defaults and Dismissals

The mandatory attorney-fault provision applies only to "resulting default entered by the clerk," "resulting default judgment," or "dismissal entered against the party." (Code Civ. Proc., § 473(b).). Where, as here, the judgment was entered by stipulation of the parties pursuant to a settlement agreement, the mandatory relief provision is unavailable . (See *In re Marriage of Hock, supra* , 70 Cal.App.4th at 1298; *Yeap v. Leake* (1997) 60 Cal.App.4th 591, 595.)

C. Discretionary Relief Requires a Showing of Excusable Grounds

For stipulated judgments, such as this case, a party may seek only discretionary relief by demonstrating that the judgment was taken against them through "mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473(b).). The moving party bears the burden of establishment by competent evidence that the judgment resulted from one of these enumerated grounds. (*Rappleyea v. Campbell* (1994) 28 Cal.App.4th 134, 138.)

Courts are particularly reluctant to grant discretionary relief from stipulated judgments because public policy favors the finality of settlements and voluntary agreements. (*In re Marriage of Hock, supra* , 70 Cal.App.4th at 1298.) Moreover, where a party has breached the judgment , courts are disinclined to disturb its finality, as the breach demonstrates a lack of good faith and undermines any claim to equitable relief. (See *Doe v. Luster* (2006) 145 Cal.App.4th 1393, 1400.)

D. Mandatory Relief Under Section 473(b) Is Unavailable

The judgment entered on April 23, 2026, was a stipulated judgment entered by agreement of the parties on the record, not a default or dismissal. Accordingly, the mandatory attorney-fault provision of section 473(b) does not apply. Defendants cannot avail themselves of mandatory relief regardless of whether an attorney's error contributed to the judgment's entry.

E. Defendants Fail to Establish Grounds for Discretionary Relief

To the extent Defendants seek discretionary relief, the motion fails for multiple independent reasons:

1. Failure to Identify Excusable Grounds

Defendants' moving papers fail to identify any specific mistake, inadvertence, surprise, or excusable neglect that justifies vacating the judgment. The Court is not permitted to speculate as to the basis for relief; the moving party must articulate and support by evidence the statutory grounds upon which relief is sought. Conclusory allegations of hardship, changed circumstances, or dissatisfaction with the agreed-upon terms do not satisfy the statutory standard. As mentioned previously, Defendants articulate procedural issue relating to the filing of their papers. The Court does not find that there were any irregularities. Defendants have been provided with due process.

2. Breach of the Judgment Bars Relief

Even assuming *arguendo* that Defendants could identify some excusable basis for relief, their material breach of the judgment , specifically, their failure to make the required monthly payments commencing March 5, 2026, weighs heavily against granting discretionary relief. Defendants voluntarily entered into the stipulated judgment, obtained the benefit of extended possession through February 28, 2027, obtained the benefit of case masking, and waived their appellate rights in exchange for the opportunity to remain in possession conditioned upon payment. Having breached this agreement by failing to make payments, Defendants cannot now seek equitable relief from the Court to avoid the consequences of their noncompliance.

3. Prejudice to Plaintiff

Setting aside the judgment at this juncture would severely prejudice Plaintiff, who bargained for and obtained the judgment through settlement, forwent immediate possession and enforcement, and has been deprived of the bargained-for monthly payments. The purpose of section 473 is to provide relief from judgments taken through error or neglect—not to permit parties who have breached their obligations to escape the consequences of their noncompliance.

C. The Judgment Is Not Void

Defendants do not contend, nor does the record support, that the judgment is void under section 473(d). The Court had jurisdiction over the parties and subject matter, and the judgment was properly entered pursuant to the parties' stipulation. The Court retained jurisdiction to enforce the judgment. Absent a jurisdictional defect, the judgment cannot be attacked as void.

<u>Ruling</u>

For the foregoing reasons, Defendants have failed to establish grounds for relief under Code of Civil Procedure section 473. The mandatory relief provision is inapplicable to a stipulated judgment, and Defendants have not demonstrated mistake, inadvertence, surprise, or excusable neglect sufficient to warrant discretionary relief. Defendants' material breach of the judgment's payment terms further undermines their request for equitable relief.

1. Defendants' Motion to Set Aside/Vacate Judgment is **<u>denied</u>**.
2. The Writ of Possession issued on July 9, 2026, shall remain in full force and effect, and the sheriff's lockout shall proceed as scheduled.
3. Plaintiff shall prepare and e-file a proposed order no later than five (5) days from the date of this hearing that conforms with this ruling, attaching a copy of this ruling, and shall serve the order on Defendants.

Discovery Law & Motion

22. 9:01 AM CASE NUMBER: C25-00677
CASE NAME: MARIEL HERNANDEZ VS. FORD MOTOR COMPANY
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO FORM INTEROGS**
FILED BY: HERNANDEZ, MARIEL
<u>*TENTATIVE RULING:*</u>
<u>Summary</u>

Plaintiff Mariel Hernandez ("Plaintiff") filed a Motion to Compel Further Responses to Form Interrogatory Nos. 12.1, 15.1, and 17.1 from Defendant Ford Motor Company ("Ford"). The Motion is **<u>continued</u>** and referred to a Discovery Referee.

<u>Background</u>

Plaintiff Mariel Hernandez commenced this action on May 11, 2025, against Defendant Ford Motor Company, asserting claims under the Song-Beverly Consumer Warranty Act (Civil Code § 1790 et seq.) arising from the purchase or lease of a subject vehicle. Plaintiff alleges that during the warranty period, the vehicle developed defects in the transmission system that substantially impaired its use, value, or safety. According to the pleadings, Plaintiff presented the vehicle to Ford's authorized repair facilities on at least six occasions between April 2021 and November 2024 for repair of these alleged nonconformities. Plaintiff contends that despite multiple repair attempts, the defects persist and that Ford failed to conduct a pre-litigation investigation or offer repurchase or replacement as required by the statute. Plaintiff seeks repurchase of the vehicle, actual damages, civil penalties, attorney fees, and costs.

Following the filing of the complaint, the parties proceeded under Code of Civil Procedure section 871.26, which governs discovery in Song-Beverly actions filed after December 31, 2024. The parties served initial disclosures on June 13, 2025, and participated in a mediation session on June 26, 2025. Ford's corporate representative with settlement authority attended the mediation. Plaintiff's counsel was present, but Plaintiff Mariel Hernandez ***was not physically present***; rather, she was reportedly available to participate by telephone. The parties dispute whether Plaintiff's telephonic availability satisfied the statutory requirement that the plaintiff "attend the mediation in person or by remote means."

On January 19, 2026, Plaintiff served Ford with Judicial Council Form Interrogatories, specifically seeking further responses to Interrogatories 12.1 (identifying persons with knowledge of facts regarding the vehicle's defects and repairs), 15.1 (facts supporting affirmative defenses), and 17.1 (facts supporting claims and defenses). Ford responded with objections, contending that discovery was improper because mediation had not concluded under section 871.26. Plaintiff sent a meet and confer letter on January 19, 2026, requesting that Ford amend its objections and provide substantive responses. Ford responded on January 21, 2026, maintaining its position that mediation was incomplete. Plaintiff filed the instant motion to compel on March 2, 2026.

<u>Plaintiff's Contentions</u>
Plaintiff argues that Ford's responses to Form Interrogatories 12.1, 15.1, and 17.1 are deficient and fail to comply with Code of Civil Procedure section 2030.220. Plaintiff contends that the requested information is fundamental to a Song-Beverly action, including the identity of witnesses who

diagnosed or repaired the vehicle and facts supporting Ford's affirmative defenses and denials. Plaintiff asserts that Form Interrogatories are presumptively appropriate in all civil cases and that Ford has no substantial justification for its refusal to provide verified, code-compliant responses. Plaintiff further contends that she satisfied the mediation attendance requirement by making herself available by telephone and that Ford's reliance on section 871.26 is improper. Plaintiff maintains that she engaged in good faith meet and confer efforts prior to filing this motion.

Defendant's Contentions

Ford argues that the motion should be denied because discovery is stayed under Code of Civil Procedure section 871.26, which requires that all discovery be stayed until mediation is concluded. Ford contends that Plaintiff failed to attend the mediation "in person or by remote means" as statutorily required; rather, Plaintiff was merely "available" by telephone without actively participating or interacting with the mediator. Ford asserts that because mediation was not properly concluded, the discovery stay remains in effect and the interrogatories are premature.

Alternatively, Ford argues that Plaintiff failed to meet and confer in good faith as required by Code of Civil Procedure sections 2016.040 and 2025.450, and that Plaintiff's Separate Statement violates California Rule of Court 3.1345 by incorporating arguments by reference, seeking further responses to interrogatories not at issue in the motion, and containing inaccurate statements regarding Ford's position on arbitration. Ford also contends that some of Plaintiff's requests seek privileged materials and attorney work product. Ford maintains that it has complied with section 871.26 in good faith and that its objections are proper.

The Court is not convinced that Plaintiff has substantially complied with the requirement to attend mediation in person or remotely. Plaintiff, being on telephone standby, without appearing during a mediation renders the Song-Beverly Act early resolution provisions meaningless. Nonetheless, the Court is also concerned that both counsel and their firms have a history of pursuing discovery motions in this and in other Song-Beverly Act cases in before this Court.

Analysis

This Court maintains a judicial philosophy that discovery motions are overused and should be discouraged unless there is no compliance with the statutes. Before making a motion to compel, counsel are advised to consider carefully whether doing so is truly worthwhile. "Motions to compel should be considered a last resort when trying to prepare a case for trial." California Civil Discovery Practice (4th ed., CEB) § 15.32[C]. Additionally, "trial courts generally have little tolerance for discovery motions because of a perception that the parties ought to be able to resolve many, if not most, discovery disputes without judicial intervention. But because legitimate discovery disputes do exist, motions to compel are sometimes justified. If a motion to compel becomes necessary, counsel should understand that busy trial courts will not often be able to spend much time analyzing complex discovery disputes." California Civil Discovery Practice (4th ed., CEB) § 15.38.6. Here, Counsel appeared to have met and conferred but are unable to resolve the discovery disputes before Plaintiff filed this third motion.

On motion of a party, stipulation of the parties, or sua sponte, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See Code Civ. Proc., §§ 639(a)(5), (b)–(d); Cal. Rules of Court, rules 3.920–3.932; *Lu v. Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court finds, in its discretion, that such an appointment of a Discovery Referee is warranted under the circumstances of this case. The Court finds that the multiple discovery motions in this case and in other cases in the jurisdiction of this County, the existing disputes raised by the pending discovery motions, and the nature of the underlying legal issues require the appointment of a Discovery Referee. Code Civ. Proc., § 639(a)(5) states: "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

The Court finds here that a discovery referee is necessary to hear and determine all disputes relevant to discovery. The Court finds that Counsel are unable to effectively meet and confer to arrive at an informal resolution of the discovery disputes.

After considering the moving and opposition papers submitted by Counsel, and analyzing the applicable statutory and decisional authorities, the Court finds good cause to make the following findings, orders and rulings.

Ruling

1. A Discovery Referee is appointed. The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Code Civ. Proc., § 639.
2. The Discovery Referee shall hear all disputes relevant to discovery in this case and report findings and make a recommendation thereon. Specifically, the Discovery Referee shall hear this Motion, and all discovery motions subsequently filed from this date forward.
3. By no later than August 10, 2026 the Parties are ordered to meet and confer pursuant to Code Civ. Proc., § 639(b) or (c) and shall submit a stipulation and proposed order listing the proposed Discovery Referee to the Court along with the proposed referee's *curriculum vitae* and fee schedule. If the Parties are unable to jointly agree to a proposed Discovery Referee by August 10, 2026, the Parties each shall submit the name of one proposed Discovery Referee and fee schedule along with his/her/their curriculum vitae to the Court by letter, emailed to dept16@contracosta.courts.ca.gov by Wednesday, August 12, 2026. The Court will select one of the proposed referees by minute order. Code Civ. Proc. § 640(b). The Discovery Referee will be requested to sign the Judicial Council ADR-110 Form. Upon receipt of the form executed by the Discovery Referee, the Court will sign the ADR-110 Form.
4. No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split 50/50 between the parties. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.
5. Plaintiff's Counsel is directed to prepare and e-file a proposed order in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc., § 639, that conforms to this ruling, approved as to form by Defendants' Counsel, no later than five (5) days after the date of this order. Counsel are ordered to provide copies of all discovery motions and responses to the Discovery Referee within five (5) days of appointment.
6. All future discovery disputes shall be referred to the Discovery Referee until further order of the Court.
7. The Parties are ordered to meet and confer and take all necessary steps to implement this

order forthwith.

8. No appearance is required at the hearing on August 5, 2026.

23. 9:01 AM CASE NUMBER: MSC21-02445
CASE NAME: NIST VS FARRELL
***HEARING ON MOTION FOR DISCOVERY COMPEL DEPOSITION OF DEFENDANT SHANNA FARRELL**
FILED BY: NIST, WILLIAM G
<u>*TENTATIVE RULING:*</u>

See Line No. 18, above.

Courtroom Clerk's Session

24. 1:30 PM CASE NUMBER: C25-00632
CASE NAME: ROCKY SPEARS VS. CHRISTINA CUNNINGHAM
HEARING IN RE: INFORMAL DISCOVERY CONFERENCE CALL WITH JUDGE REYES
FILED BY:
<u>*TENTATIVE RULING:*</u>

The Parties are ordered to appear via Zoom for the informal discovery conference. No tentative ruling is published.